

DEPARTMENT OF WAR

Small Business Innovation Research (SBIR) Program

2026 SBIR Broad Agency Announcement (BAA)

Amendment 1 (June 3, 2026)

The purpose of amendment 1 is to update the following sections:

1.9 Discretionary Technical and Business Assistance (TABA)

2.2 SBA Company Registry

6.1 Submission Details

IMPORTANT DATES

	Pre-Release	Open	Close
Release 1	Apr 13, 2026	May 06, 2026	Jun 03, 2026
Release 2	May 06, 2026	May 27, 2026	Jun 24, 2026
Release 3	Jun 03, 2026	Jun 24, 2026	Jul 22, 2026
Release 4	Jul 01, 2026	Jul 22, 2026	Aug 19, 2026
Release 5	Aug 05, 2026	Aug 26, 2026	Sep 23, 2026
Release 6	Sep 02, 2026	Sep 23, 2026	Oct 21, 2026

UNLESS OTHERWISE STATED WITHIN THE TOPIC, complete proposals must be certified and submitted in DSIP no later than 12:00p.m. ET on the close date of the release listed above.

NOTE: DoW Services and Components may elect to release topics under this BAA once a month throughout fiscal year 2026. New research topics will pre-release on the first Wednesday of each month, based on the schedule above. Each release will have corresponding open and close dates applicable to the topics within that release. Any topic released that deviates from the open/close schedule in the matrix above will be noted within the Component-specific instructions and on DSIP.

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1.0 PROGRAM DESCRIPTION

1.1 Introduction

The Department of War (DoW) Small Business Innovation Research (SBIR) Program's objectives include stimulating technological innovation by strengthening the role of small businesses in meeting DoW research and development (R&D) needs, delivering innovative technology to the Warfighter, and growing the defense industrial base through commercialization.

The Small Business Administration (SBA), through its [SBIR/STTR Policy Directive](#), purposely departs from traditional government solicitation formats and requirements, simplifying the SBIR/STTR award process and minimizing the regulatory burden on small businesses. Consistent with the SBA SBIR/STTR Policy Directive, DoW is soliciting proposals as a Broad Agency Announcement (BAA). DoW invites Small Business Concerns (SBCs) with the capability to conduct R&D and commercialize the results in any of the defense-related topic areas described in this SBIR Program BAA to submit proposals.

1.1.1 General BAA Procedures

Federal Acquisition Regulation (FAR) 2.101 defines a BAA as a general announcement of an agency's research interest including criteria for selecting proposals and soliciting the participation of all offerors capable of satisfying the Government's needs. FAR 35.016 prescribes the procedures for the use of BAAs as a competitive method for acquiring basic and applied research, and in some cases, advanced technology development. BAAs are intended to solicit scientific study and experimentation directed toward advancing knowledge, understanding and capability in areas of interest to the Government, rather than to acquire specific systems or hardware.

This BAA provides the framework for DoW to pursue innovative research concepts that address defense-related scientific and engineering challenges. By leveraging the flexibility of the SBA SBIR/STTR Policy Directive, this BAA encourages scientific and technical proposals most likely to yield significant results for DoW and the private sector.

This BAA may include broadly defined topics as well as more specific, individual program requirements. Topics are intentionally non-prescriptive and structured to accommodate varied technical and scientific approaches, encouraging novel solutions that align with DoW modernization goals. Proposals should be responsive to the specific problem statement(s) and area(s) of interest outlined in the release topics.

1.1.2 Acquisition Framework

This BAA is for research topics accepting Phase I or Direct to Phase II proposals. A separate BAA will not be issued requesting Phase II proposals. All proposing SBCs that receive a Phase I award from this BAA will be eligible to participate in Phase II competitions and potential Phase III awards. DoW Services/Components will notify Phase I awardees of the Phase II proposal submission requirements.

Depending on the nature of the proposed effort, and the statutory authorities available, the Government retains the flexibility to award a FAR-based procurement contract, purchase order, or Other Transaction (OT) under this solicitation, as appropriate. FAR-based contract types, including, Firm-Fixed-Price, Firm-Fixed-Price Level of Effort, Labor Hour, Time & Material, or Cost-Plus-Fixed-Fee type contracts may be negotiated at the discretion of the Component Contracting Officer. Additionally, the Government may award OTs pursuant to 10 U.S.C. 4021 (Research Projects) or 10 U.S.C. 4022 (Prototype Projects). Follow-on production OTs may also be awarded in accordance with 10 U.S.C. 4022(f) if the statutory conditions are met. Separately, awards may also be made under 10 U.S.C. 4023 (Procurement for Experimental Purposes), when appropriate.

Multiple procurements are planned and anticipated to be awarded for each topic. Each proposal will be

evaluated independently, and funding decisions will be made without regard to other submissions. DoW Services/Components may elect to fund several, one or none of the proposals received in response to a given topic. All awards are subject to both a risk-based due diligence security review and availability of funds, and the DoW is under no obligation to make any awards under this BAA. Offerors are solely responsible for all costs incurred in the preparation and submission of proposals. The DoW will not reimburse any expenses related to proposal development or pre-award activities. This BAA is not a mechanism for submitting unsolicited proposals, and unsolicited proposals will not be considered nor receive a response. Only proposals that are responsive to a posted topic release will be considered.

The instructions contained in this BAA are applicable to all scheduled topic releases. Each release will have corresponding open and close dates applicable only to those topics contained within the release. Additional instructions specific to an individual topic release will be contained within the component-specific instructions. All proposals submitted in response to any topic posted under this solicitation will be governed by this BAA. Proposals must conform to this announcement's terms.

1.2 A Three Phased Program

The SBIR Program has three phases, Phases I, II, and III. Phase I determines, to the extent possible, an idea's scientific, technical, and commercial merit and feasibility within the SBIR program. Phase I and II awards are made adhering to current SBA Policy Directive guidelines.

The Phase I period of performance is generally between six to twelve months. Proposals should focus on Research or Research & Development (R/R&D) to prove the proposed effort's scientific and technical feasibility, and commercialization potential, the successful completion of which is a prerequisite for further DoW support in Phase II. Proposing SBCs are encouraged to consider whether the research or R&D being proposed to DoW Services/Components also has private sector potential, either for the proposed application or as a base for other applications.

Phase II awards will be made to proposing SBCs based on results of Phase I awards and the Phase II proposal's scientific merit, technical merit, and commercialization potential. The period of performance is generally 24 months. The objective of Phase II is to continue and further develop the R/R&D effort from the completed Phase I award.

Phase III refers to work that derives from, extends, or completes an effort made under prior SBIR funding agreements, but is funded by sources other than the SBIR Program. Under Phase III, the SBC should focus on commercializing previously SBIR-funded technology and is required to obtain funding from either the private sector, a non-SBIR federal source, or both, to develop the prototype into a viable product or non-R&D service for sale in military or private sector markets.

1.3 OUSW(R&E) Critical Technology Areas

Although each DoW Service/Component develops SBIR and STTR topics tailored to their mission needs, topics may also align with the Office of the Under Secretary of Defense, Research & Engineering (OUSW(R&E)) Critical Technology Areas (CTAs). While many technologies may cross between these categories, these areas represent the broad and different approaches required to advance technologies crucial to the Department, with a focus on accelerating key capabilities' transitions to the Military Services and Combatant Commands.

OUSW(R&E) CTAs include:

- Applied Artificial Intelligence (AAI)
- Biomanufacturing (BIO)
- Contested Logistics Technologies (LOG)
- Quantum & Battlefield Information Dominance (QBID)

- Scaled Hypersonics (SHY)
- Scaled Directed Energy (SCADE)

Full descriptions of the OUSW (R&E) CTAs can be viewed [here](#).

Below are additional Component Technology Priority Areas (TPAs) supporting DoW Services/Component-specific mission-critical areas:

- FutureG
- Trusted AI and Autonomy
- Biotechnology
- Advanced Computing and Software
- Integrated Sensing and Cyber
- Directed Energy (DE)
- Hypersonics
- Microelectronics
- Integrated Network Systems-of-Systems
- Quantum Science
- Space Technology
- Renewable Energy Generation and Storage
- Advanced Materials
- Human-Machine Interfaces
- Advanced Infrastructure & Advanced Manufacturing
- Combat Casualty Care
- Emerging Threat Reduction
- Military Infectious Diseases
- Military Operational Medicine
- Mission Readiness & Disaster Preparedness
- Nuclear
- Sustainment & Logistics

Full descriptions of the above TPAs can be reviewed [here](#).

1.4 Eligibility and Performance Requirements

Each proposing entity must qualify as an SBC as defined in 13 C.F.R §§ 701-705 at time of award and certify to this in the proposal's cover sheet. The eligibility requirements for the SBIR/STTR programs are unique and do not correspond to those of other small business programs.

- Proposing SBC must meet eligibility requirements for Small Business Ownership and Control (see 13 CFR § 121.702).
- The proposing SBC must conduct a minimum of two-thirds of the Phase I research and/or analytical work. For Phase II, the proposing SBC must perform no less than 50 percent of the research and/or analytical work. The work percentage is measured via direct and indirect costs. Occasionally, deviations from these SBIR requirements may occur with the Funding Agreement officer's written approval after consultation with the agency SBIR/STTR program manager/coordinator. For more information on the percentage of work calculation during proposal submission, refer to section 3.7.
- For both Phase I and II, the principal investigator's primary employment must be with the proposing SBC at the time of the award and during the conduct of the proposed effort. Primary employment means that more than one-half of the principal investigator's time is spent with the small business (based on a 40-hour work week). Primary employment with an SBC precludes full-time employment at another organization. Deviations from this requirement or changes to the principal investigator are subject to the Funding Agreement officer approval.
- For both Phase I and Phase II, the SBC and its subcontractors must perform all research or R&D work in the United States.
- Joint ventures and limited partnerships are permitted, provided that the entity qualifies as small business in accordance with the ownership requirements in 13 CFR 121.702(a)(1)(iii) and the size requirements in 13 CFR 121.702(c)(6). Proposing SBC must disclose joint ventures with existing (or planned) relationships/partnerships with any foreign entity or any foreign government-controlled companies. See sections 2.6 and 3.7 for more detail.

1.5 Majority Ownership in Part by Multiple Venture Capital, Hedge Fund, and Private Equity Firms

Unless otherwise noted in the participating Service/Component instructions, proposing SBCs that are multiple venture capital operating companies (VCOCs), hedge funds, or private equity funds majority owned are **ineligible** to submit applications to or receive awards under this solicitation. If a Service/Component authorizes such participation, any proposing VCOC, hedge fund, and/or private equity fund-owned SBC, whether in part or in whole, must identify each foreign national, foreign entity, or foreign government holding or controlling greater than a 5 percent, either directly or indirectly held, equity stake in the proposing SBC. The proposing SBC must also identify any ultimate parent owner(s) and other entities and/or individuals owning more than a 5 percent equity stake in its ownership chain.

In accordance with the requirements of 13 CFR 121.702(a)(2), no single venture capital operating company, hedge fund, or private equity firm may own more than 50 percent of the concern unless that single venture capital operating company, hedge fund, or private equity firm qualifies as an SBC that is more than 50 percent directly owned and controlled by individuals who are citizens or permanent resident aliens of the United States.

1.6 Performance Benchmark Requirements/Increased Minimum Performance Standards for Experienced Firms

Proposing SBCs with multiple prior SBIR/STTR awards must meet minimum performance requirements to be eligible to apply for a new Phase I or Direct-to-Phase II award. The Phase I to Phase II Transition Rate addresses the extent to which an awardee progresses a project from Phase I to Phase II. The Commercialization Benchmark addresses the extent to which an awardee has moved past Phase II work towards commercialization.

The SBIR and STTR Extension Act of 2022 (Pub. L. 117-183) amended the benchmarks' application for more experienced firms. Find detailed information on benchmark calculations, increased performance standards for more experienced firms and consequence of failure to meet benchmarks [here](#). SBA will notify companies failing either benchmark and the relevant officials at the participating agencies.

The SBIR/STTR Policy Directive defines the Departments of the Army, Navy, and Air Force each as its own federal agency, and the remaining DoW Components as an executive agency of the Department of War. Therefore, companies that fail to meet either of the benchmarks under the Increased Performance Standards for More Experienced Firms may not receive more than an overall total of 80 awards from DoW, as detailed in the breakdown below:

Army – 20 total Phase I and Direct to Phase II awards

Navy – 20 total Phase I and Direct to Phase II awards

Air Force – 20 total Phase I and Direct to Phase II awards

All other DoW Components combined – 20 total Phase I and Direct to Phase II awards

1.7 Direct to Phase II Program

15 U.S.C. §638 (cc) allows DoW to make an SBIR Phase II award to an SBC with respect to a project, without regard to whether the SBC was provided an SBIR program Phase I award with respect to such project. DoW does not guarantee Direct to Phase II opportunities will be offered in future solicitations.

Each eligible topic requires proposing SBCs provide documentation to demonstrate feasibility described in the Phase I section of the topic has been met. **Feasibility documentation cannot be based solely upon or logically extend from any prior or ongoing federally funded SBIR or STTR work.** The proposing SBC and/or the principal investigator must have substantially performed the work submitted

in the feasibility documentation. The proposing SBC must demonstrate ownership or licensure of any intellectual property (IP) associated with such technology prior to proposal submission to enable it and its subcontractors to legally carry out the proposed work.

If the proposing SBC fails to demonstrate technical merit and feasibility equivalent to the Phase I level as described in the associated topic, the related Phase II proposal will not be accepted or evaluated, in accordance with the Service/Component-specific Direct to Phase II instructions.

Refer to the Service/Component-specific Direct to Phase II instructions for full details regarding Service/Component Direct to Phase II processes and proposal preparation requirements.

1.8 Program on Innovation Open Topics

15 U.S.C. §638(ww) requires DoW establish innovation open topic activities to:

- a. increase the transition of commercial technology to the DoW;
- b. expand the small business nontraditional industrial base;
- c. increase commercialization derived from DoW investments; and
- d. expand the ability for qualifying SBCs to propose technology solutions to meet DoW needs.

Unlike conventional topics, which specify the desired technical objective and output, open topics use generalized mission requirements or specific technology areas to adapt commercial products or solutions to close capability gaps, improve performance, or provide technological advancements in existing capabilities.

Open topics released under this solicitation will be clearly identified as such in the title and topic objective. Proposal preparation instructions for open topics may vary significantly across DoW Services/Components. Proposing SBCs must carefully read and follow all instructions from the DoW Service/Component for the open topic of interest. Unless specifically noted in the Service/Component instructions, all requirements outlined in this solicitation remain in effect for open topics.

An SBC may only submit one proposal to each open topic. If an SBC submits more than one proposal for a single open topic, only the most recent certified proposal submitted prior to the submission deadline will receive an evaluation. All previously submitted proposals for the same open topic will be marked nonresponsive and will not receive an evaluation. Refer to the Service/Component-specific instructions for any additional requirements specific to open topics.

1.9 Discretionary Technical and Business Assistance (TABAs)

The Small Business Innovation and Economic Security Act, Section 7, mandates agencies to offer TABAs. As identified in 15 U.S.C. §638(q)(1), SBCs may use TABA funding to assist during SBIR/STTR projects with making better technical decisions; solving technical problems; minimizing associated technical risks; developing and commercializing new SBIR/STTR commercial products and processes; and/or screening for potential foreign involvement in technology development or commercialization activities.

Proposing SBCs may request to contract TABA services through one or more TABA providers or through funding used to hire new or augment staff, or direct staff to conduct or participate in training activities consistent with the goals listed in 15 U.S.C. §638(q)(1). The requested amount will be included in the total funding agreement cost and shall not exceed Phase I and II funding agreement limits as set by SBA. Proposed TABA services do not count towards the SBIR/STTR percentage of work guidelines as required in the SBA Policy Directive.

Cost Requirements

If the SBC supports the need for TABA sufficiently as determined by the Government, the SBC may receive up to \$6,500 in contract obligations per Phase I project. For Phase II, the SBC may receive up to \$50,000 in contract obligations per project. These amounts are in addition to the maximum award funding guideline limitation specified in the respective SBIR/STTR topic.

The cost of TABA services must be included in the Cost Volume (Volume 3) and a detailed rationale for the requested TABA services must be included in Supporting Documents (Volume 5) of the proposal. This amount cannot include any profit/fee for the proposing SBC. Additionally, TABA costs cannot be factored into the calculation of general and administrative expenses (G&A) for the proposing SBC. The amount is based on the original contract period of performance and does not apply to period of performance extensions and/or enhancements.

Minimum TABA Request Requirements

If the TABA request does not include the following items, the TABA request will be denied.

- TABA provider(s) name
- TABA provider(s) point of contact, email address, and phone number
- An explanation of why the TABA provider(s) is uniquely qualified to provide the service
- assistance
- Total TABA provider(s) cost, number of hours, and labor rates (average/blended rate is acceptable)

Proposing SBCs must review individual Service/Component-specific instructions for TABA request details or use of required templates. TABA requests that are not submitted in accordance with the Component requirements will be denied.

1.10 Phase II Enhancement Policy

To further encourage the transition of SBIR research into both DoW acquisition programs and the private sector, certain DoW Services/Components developed their own Phase II Enhancement policies. Under this policy, the Service/Component will provide a Phase II awardee with additional Phase II SBIR funding if the proposing SBC can match the additional SBIR funds with non-SBIR funds from DoW acquisition programs or the private sector.

See Service/Component instructions for more details on Phase II Enhancement opportunities.

1.11 Commercialization Readiness Program (CRP)

The SBIR/STTR Reauthorization Act of 2011 established the Commercialization Pilot Program (CPP) as a long-term program called the Commercialization Readiness Program (CRP). Each Military Department (Army, Navy, and Air Force) has a CRP; refer to the Service/Component instructions for further information.

The DoW SBIR/STTR Program has established the OSW Accelerated Research for Transition (ART) for purposes of technology maturation and transfer. For more information contact osd.ncr.ousd-r-e.mbx.sbir-sttr-tech-transition@mail.mil.

1.12 State and Other Available Assistance

Many states have established programs to provide services to those proposing SBCs and individuals wishing to participate in the Federal SBIR Program. These services vary from state to state, but may include:

- a. Information and technical assistance;
- b. Matching funds to SBIR recipients;
- c. Assistance in obtaining Phase III funding.

Contact your [State SBIR/STTR Support office](#) for further information. SBCs may seek general administrative guidance from small and disadvantaged business utilization specialists located in various defense contract management activities throughout the continental United States.

1.13 Fraud and Fraud Reporting

Knowingly and willfully making any false, fictitious, or fraudulent statements or representations may be a felony under the Federal Criminal False Statement Act (18 U.S.C. Sec 1001), punishable by a fine of up to \$10,000, up to five years in prison, or both.

The DoW Office of Inspector General Hotline (“Defense Hotline”) is an important avenue for reporting fraud, waste, abuse, and mismanagement within the DoW. The Office of Inspector General operates this hotline to receive and investigate complaints or information from contractor employees, DoW civilians, Service members, and the public. Individuals who wish to report fraud, waste or abuse may contact the Defense Hotline at (800) 424-9098 between 8:00 a.m. and 5:00 p.m. Eastern Time or visit their [website](#) to submit a complaint. Mailed correspondence should be addressed to the Defense Hotline, The Pentagon, Washington, DC 20301-1900, or email addressed to hotline@dodig.mil.

2.0 CERTIFICATIONS AND REGISTRATIONS

2.1 System for Award Management (SAM) Registration

The System for Award Management (SAM) allows proposing SBCs to provide basic information on business structure, capabilities, and financial and payment information with the Federal Government. Proposing SBCs must register in SAM [here](#). Registration in SAM will generate the Unique Entity ID (UEI) number and the Commercial and Government Entry (CAGE) code. The UEI is required for registration in the U.S. Small Business Administration’s (SBA) Company Registry. A proposing SBC that is already registered in SAM should verify the registration is active, and its representations and certifications are current to avoid award delay.

2.2 SBA Company Registry

Proposing SBCs must be registered in the [SBA Company Registry](#). SBCs will be required to verify registration by providing the SBC Control ID and Proof of Registration/Certification during proposal submission. **IMPORTANT: SBIR.gov enhanced identity verification requires additional processing time. SBCs should start registration process early as verification cannot be expedited and a valid SBC Control ID is required for proposal submission in DSIP.**

2.3 Defense SBIR/STTR Innovation Portal (DSIP) Registration

Individuals from proposing SBCs must be registered in the [DSIP](#) to prepare and submit proposals. Proposing SBCs submitting through this site for the first time will be asked to register. All users are required to have an individual user account to access DSIP. It is recommended proposing SBCs register as soon as possible upon identification of a proposal opportunity to avoid delays in the proposal submission process.

DSIP user accounts are authenticated by Login.gov. Users who do not already have a Login.gov account will be required to create one. Users who already have a Login.gov account can link their existing Login.gov account with their DSIP account. Job Aids and Help Videos to walk you through the process are in the [Learning & Support](#) section of DSIP.

Be advised the sharing of accounts and passwords is a violation of the Terms of Use for Login.gov and DoW policy.

Registered SBCs will have a designated DSIP Firm Admin responsible for creating the Firm PIN, controlling access for other users in the SBC and completing and maintaining the Firm-level forms, which must be completed before any proposals can be submitted.

Users should complete their account registrations as soon as possible to avoid any delays in proposal submissions.

NOTE: The DSIP application is only accessible from within the United States, which is defined as the fifty states, the territories and possessions of the Federal Government, the Commonwealth of Puerto Rico, the Republic of the Marshall Islands, the Federated States of Micronesia, the Republic of Palau, and the District of Columbia.

2.3.1 DSIP Assistance and Support

For assistance with the DSIP application, please visit the [Learning & Support](#) section of DSIP. Email DSIP Support at DoDSBIRSupport@reisystems.com only for further assistance with issues pertaining directly to the DSIP application. Questions submitted to DSIP Support will be addressed in the order received during normal operating hours (Monday through Friday, 9:00 a.m. to 5:00 p.m. ET). Please include information on your SBC, a proposal number (if applicable), and screenshots of any pertinent errors or issues encountered.

DSIP Support cannot provide updates to proposal status after submission, such as proposal selection/non-selection status or contract award status. Contact the DoW Service/Component that originated the topic following the Service/Component-specific instructions given at the beginning of that Service/Component-specific instructions.

2.4 Required Certifications

At the time of proposal submission, each SBC must certify via the Cover Sheet of the proposal that it meets the size, ownership, and other requirements of the SBIR Program. In addition, the Policy Directive includes certification requirements set forth in the SBIR and STTR Extension Act of 2022 (Public Law 117-183). SBCs are required to certify that they are meeting the Program's requirements during the life cycle of the funding agreement: at the time of the Phase I and Phase II award, prior to final payment on the Phase I award, prior to receiving 50 percent of the total Phase II award amount, and prior to final payment on the Phase II award.

2.5 Due Diligence Program to Assess Security Risks

15 U.S.C. §638(vv) requires the DoW, in coordination with the SBA, to establish and implement a due diligence program to assess and, when possible, mitigate national security risks from SBCs seeking a federally funded award. The Department will use the proposal and information in response to the "Disclosures of Foreign Affiliations or Relationships to Foreign Countries" (proposal submission Volume 7) to conduct a risk-based due diligence review of the following areas: cybersecurity practices; patent analysis; employee analysis and foreign ownership, including the SBC's financial ties and obligations (which shall include surety, equity, and debt obligations); and SBC employees' ties to a foreign country, foreign person, or foreign entity. Disclosure of foreign affiliations or relationships on this form does not mean denial. The Department will also assess proposals utilizing open-source analysis and analytical tools, for the purpose of confirming the accuracy of the information provided as well as determining if the proposing SBC failed to disclose the information set forth in 15 U.S.C. 638(g)(13).

After reviewing the proposing SBC's responses to the Disclosures of Foreign Affiliations or Relationships to Foreign Countries, if DoW determines it appropriate the Department may ask the SBC to provide true copies of any contractual or financial obligation or other agreement specific to a business arrangement or joint-venture like arrangement with an enterprise owned by a foreign state or any foreign

entity in effect during the five-year period preceding the SBC's proposal submission.

The DoW may not make awards that pose unacceptable security risks pursuant to 15 U.S.C. §638(vv). If the risk-based due diligence review concludes that an SBC should not be eligible for the specific SBIR or STTR award due to a national security risk that cannot be adequately mitigated, the proposal will not receive consideration for possible award regardless of the results of the technical review of the proposal. Attachment 2: Defense SBIR and STTR Due Diligence Program Common Risk Matrix of the memo titled "[Defense Small Business Innovation Research and Small Business Technology Transfer Due Diligence Program](#)", dated 13 May 2024, provides details on the factors for assessing SBC risk during the due diligence review.

2.6 Cybersecurity Maturity Model Certification (CMMC) Program

DoW has established the Cybersecurity Maturity Model Certification (CMMC) Program in order to verify contractors have implemented required security measures necessary to safeguard Federal Contract Information (FCI) and Controlled Unclassified Information (CUI). CMMC requirements will apply to all DoW solicitations and contracts for which a defense contractor or subcontractor will process, store, or transmit FCI or CUI on its unclassified contractor information systems. It is important to note that subcontractors are subject to flow-down requirements if the subcontractor will process, store, or transmit FCI or CUI on its unclassified contractor information systems.

The CMMC Program provides assessments at three levels, each incorporating security requirements from existing regulations and guidelines.

Level 1: Basic Safeguarding of FCI

- Requirements: Annual self-assessment and annual affirmation of compliance with the 15 security requirements in FAR clause 52.204-21.

Level 2: Broad Protection of CUI

- Requirements:
 1. Either a self-assessment or an independent assessment by an authorized CMMC Third-Party Assessment Organization (C3PAO) every three years, as specified in the solicitation.
 - Determined by the type of information processed, transmitted, or stored on the contractor or subcontractor information systems.
 2. Annual affirmation, verify compliance with the 110 security requirements in NIST SP 800-171 Revision 2.

Level 3: Higher-Level Protection of CUI Against Advanced Persistent Threats

- Requirements:
 1. Achieve CMMC Status of Final Level 2.
 2. Undergo an assessment every three years by the Defense Contract Management Agency's (DCMA) Defense Industrial Base Cybersecurity Assessment Center (DIBCAC).
 3. Provide an annual affirmation verifying compliance with the 24 identified requirements from NIST SP 800-172.

Projected CMMC level requirements will be identified within the respective topic. Proposers should carefully review and consider these updated requirements when preparing their proposals, as compliance may impact proposed costs and technical approaches. For additional CMMC information and resources visit <https://dodcio.defense.gov/cmmc/About/>.

2.6.1 Resources for Understanding FOCI & Cybersecurity Readiness

DoW has partnered with Project Spectrum to provide online resources and courses on Understanding Foreign Ownership, Control, or Influence (FOCI) and improving cybersecurity

readiness, resiliency, and compliance as it relates to CMMC. SBCs can register and access these courses and resources at projectspectrum.io.

2.7 Joint Ventures

A small business joint venture entity must submit, with its proposal, the representation required in paragraph (c) of FAR solicitation provision 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, and paragraph (c) of FAR provision 52.219-1, Small Business Program Representations, in accordance with 52.204-8(d) and 52.212-3(b) for the following categories:

- a. Small business;
- b. Service-disabled veteran-owned small business;
- c. Women-owned small business (WOSB) under the WOSB Program;
- d. Economically disadvantaged women-owned small business under the WOSB Program; or
- e. Historically underutilized business zone small business.

These representations can be found [here](#) and must be uploaded to Volume 5, Supporting Documents of the proposal submission in DSIP, if applicable.

2.8 Conflicts of Interest

Contract awards to an SBC owned by or employing current, or previous, Federal Government employees could create conflicts of interest for those employees, which may be a violation of federal law.

2.9 Organizational Conflicts of Interest (OCI)

FAR 9.5 Requirements

In accordance with FAR 9.5, proposing SBCs are required to identify and disclose all facts relevant to potential organizational conflicts of interest (OCIs) involving the proposing SBC's organization and any proposed team member (sub-awardee, consultant). The proposing SBC is responsible for providing this disclosure with each submitted proposal. The disclosure must include the proposing SBC's, and as applicable, proposed team member's OCI mitigation plan. The OCI mitigation plan must include a description of the actions the proposing SBC has taken, or intends to take, to prevent the existence of conflicting roles that might bias the proposing SBC's judgment, and to prevent the proposing SBC from having unfair competitive advantage. The OCI mitigation plan will specifically discuss the disclosed OCI in the context of each of the OCI limitations outlined in FAR 9.505-1 through FAR 9.505-4.

Agency Supplemental OCI Policy

DoW Services/Components also may have a supplemental OCI policy prohibiting contractors/performers from concurrently providing scientific engineering technical assistance (SETA), advisory and assistance services (A&AS), or similar support services, and being a technical performer. As part of the FAR 9.5 disclosure requirement, a proposing SBC must affirm whether the proposing SBC or any proposed team member (sub-awardee, consultant) is providing SETA, A&AS, or similar support to any DoW Service/Component office(s) under: (a) a current award or sub-award; or (b) a past award or sub-award that ended within one calendar year prior to the proposal's submission date. If SETA, A&AS, or similar support is or was provided to any DoW Service/Component office(s), the proposal must include:

- a. The name of the DoW Service/Component office receiving the support;
- b. The prime contract number;
- c. Identification of proposed team member (sub-awardee, consultant) providing the support; and
- d. An OCI mitigation plan in accordance with FAR 9.5.

Government Procedures

In accordance with FAR 9.503, 9.504 and 9.506, the Government will evaluate OCI mitigation plans to avoid, neutralize, or mitigate potential OCI issues before award and determine whether it is in the government's interest to grant a waiver. The U.S. Government will only evaluate OCI mitigation plans for proposals determined selectable under the solicitation evaluation criteria and funding availability.

The government may require proposing SBCs provide additional information to support evaluation of the proposing SBC's OCI mitigation plan.

If the government determines a proposer failed to fully disclose an OCI; or failed to provide a government waiver as described above; or failed to reasonably provide additional information the government requested when evaluating the proposer's OCI mitigation plan, the government may reject the proposal and withdraw it from consideration for award.

2.10 Research Involving Human Subjects/Human Subject Research (RIHS/HSR)

All research involving human subjects, to include use of human biological specimens and human data, shall comply with the applicable federal and state laws, and agency policy/guidelines for human subject protection (see Section 5.2 and Appendix B).

Institutions receiving funding for research involving human subjects must provide documentation of a current federal assurance of compliance with federal regulations for human subject protection; for example a Department of Health and Human Services, Office for Human Research Protections federal-wide assurance (<http://www.hhs.gov/ohrp>). The awarding DoW Service/Component may also request additional federal assurance documentation. All institutions engaged in human subject research, to include subcontractors, must also have a valid assurance. In addition, personnel involved in human subject research must provide documentation of completed appropriate training for the protection of human subjects. Institutions proposing to conduct human subject research that meets one of the exemption criteria in 32 CFR 219.101 are not required to have a federal assurance of compliance. Proposing SBCs should clearly segregate research activities involving human subjects from other R&D activities in their proposal.

If selected, institutions must also provide documentation of institutional review board (IRB) approval, or a determination from an appropriate official in the institution, that the work meets one of the exemption criteria with 32 CFR 219. As part of the IRB review process, evidence that all investigators are appropriately trained should accompany the protocol. The protocol, separate from the proposal, must include a detailed description of the research plan, study population, risks and benefits of study participation, recruitment and consent process, and data collection and analysis.

The amount of time required for the IRB to review and approve the protocol will vary based on the IRB's procedures, the complexity of the research, the level of risk to study participants and the responsiveness of the investigator. The average IRB approval process can last between one and three months. Once the IRB has approved the research, the awarding DoW Service/Component will review the protocol and the IRB's determination to ensure that the research will be conducted in compliance with both DoW and Service/Component policies. The DoW review process can last between three to six months. Ample time should be allotted to complete both the IRB and DoW approval processes prior to recruiting subjects.

No funding can be used towards human subject research until ALL approvals are granted.

Submitters proposing research involving human and/or animal use are encouraged to separate these tasks in the technical proposal and cost proposal to avoid potential contract award delays.

2.11 Research Involving Animal Subjects

All research, development, testing, experimentation, education, or training involving the use of animals shall comply with the applicable federal and agency rules on animal acquisition, transport, care, handling, and use (see Section 5.2 and Appendix B).

For submissions containing animal use, proposals should briefly describe plans for their institutional animal care and use committee (IACUC) review and approval.

All recipients must receive their IACUC's approval, as well as secondary or headquarters-level approval from a DoW veterinarian trained or experienced in laboratory animal medicine and science. **No animal research may be conducted using DoW funding until all appropriate DoW office(s) grant approval. Submitters proposing research involving human and/or animal use are encouraged to separate these tasks in the technical proposal and cost proposal to avoid potential contract award delays.**

2.12 Research Involving Recombinant DNA Molecules

All research involving recombinant DNA molecules shall comply with the applicable federal and state law, regulation, and additional agency guidance. An institutional biosafety committee must approve the research.

In addition to the standard federal and DoW procurement certifications, the SBA SBIR Policy Directive requires the proposing business concerns provide certain information at time of award and during the award life cycle. Each proposing SBC must provide this additional information at the time of the Phase I and Phase II award, prior to final payment on the Phase I award, prior to receiving 50 percent of the Phase II total award amount, and prior to final payment on the Phase II award.

2.13 Federal Acquisition Supply Chain Security Act Orders

FAR 52.204-29 Federal Acquisition Supply Chain Security Act (FASCSA) Orders—Representation and Disclosures and FAR 52.204-30 FASCSA Orders—Prohibition are included in this solicitation. In accordance with FAR 52.204-29 and FAR 52.204-30, proposing SBCs must review FASCSA orders [here](#) for covered articles, or any products or services produced or provided by a source, that an applicable FASCSA order prohibits.

During contract performance, the contractor shall review SAM.gov at least once every three months, or as the contracting officer advises, to check for covered articles, or products or services produced subject as part of any new FASCSA order(s) that could impact their supply chain, and report to the contracting officer any covered article, or product or service produced or provided by a source provided to the government or used during the contract performance.

The proposing SBC represents that, via proposal submission under this solicitation, it conducted a reasonable inquiry, and it does not propose to provide or use any covered article, or any products or services produced or provided by a source, if an applicable FASCSA prohibited the covered article or the source effective this solicitation's issue date.

2.14 BlueUAS Certification

SecWar [Unleashing U.S. Military Drone Dominance](#) memorandum dated 10 July 2025 provides a goal to eliminate barriers to purchase and train with emerging UAS technology. As of December 2025, the Department's BlueUAS Certification process has transitioned from the Defense Innovation Unit (DIU) to the Defense Contract Management Agency (DCMA). Companies who are seeking BlueUAS certification can review the process and submit their product(s) for assessment via DCMA's Blue List portal: <https://bluelist.appsplatformportals.us/Blue-UAS-Portal/>.

IMPORTANT: Unless specifically required per the topic information, companies are not required to have BlueUAS certification to compete for awards as included in this solicitation, nor are DoW SBIR/STTR program offices responsible for reimbursement of costs incurred by companies pursuing BlueUAS certification.

3.0 PROPOSAL PREPARATION INSTRUCTIONS AND REQUIREMENTS

3.1 Introduction

The proposal must provide sufficient information to demonstrate to the evaluator(s) that the proposed work represents an innovative approach to an important scientific or engineering problem and is worthy of support under the stated criteria. The proposed research or R&D must be responsive to the chosen topic, although it does not need to use the exact approach specified in the topic, if applicable. SBCs should consider the following:

- a. Does the technical approach have a reasonable chance of meeting the topic objective (if applicable)?
- b. Is this approach innovative, not routine, with potential for commercialization?
- c. Does the proposing SBC have the capability to implement the technical approach or can it obtain the appropriate people and equipment for the task?

DSIP provides a structure for providing the following proposal volumes:

- a. Volume 1: Proposal Cover Sheet
- b. Volume 2: Technical Volume
- c. Volume 3: Cost Volume
- d. Volume 4: Company Commercialization Report
- e. Volume 5: Supporting Documents
- f. Volume 6: Fraud, Waste and Abuse Training
- g. Volume 7: Disclosures of Foreign Affiliations or Relationships to Foreign Countries

Each Service/Component guidance on allowable proposal content may vary. A completed proposal submission in DSIP does NOT indicate that each proposal volume has been completed in accordance with the Service/Component-specific instructions. Accordingly, it is the proposing SBC's responsibility to consult the Service/Component-specific instructions for detailed guidance, including required proposal documentation and structure, cost and duration limitations, budget structure, TABA allowance and proposal page limits.

3.2 Export-Controlled Topic Requirements

Export of all unclassified technical data with military or space application in the possession of, or under the control of, a DoW Component information, which includes, in some circumstances, release to foreign nationals within the United States, without first obtaining approval, authorization, or license from the Department of State for items controlled by the International Traffic in Arms Regulations (ITAR), or the Department of Commerce for items controlled by the Export Administration Regulations (EAR), may constitute a violation of law.

Pursuant to Defense Federal Acquisition Regulation Supplement (DFARS) Procedures Guidance and Information 225.7901-2, your firm should direct its attention to the clause at DFARS 252.225-7048, Export-Controlled Items for questions concerning compliance with ITAR/EAR.

Further, in accordance with Department of Defense Directive 5230.25, Withholding of Unclassified Technical Data from Public Disclosure, contractors, or subcontractors that will handle technical data that might have military or space applications, must certify that they will comply with all applicable U.S. laws that control the export of sensitive data, as follows:

If any portion of the proposed SBIR effort is subject to ITAR an SBC must complete a fully certified DD Form 2345, Military Critical Technical Data Agreement, and provide a copy or evidence of application submission within Volume 5. The DD Form 2345, Military Critical Technical Data Agreement, instructions, and Frequently Asked Questions (FAQs) may be found at the United States/Canada Joint Certification Program (JCP) website, [JCP Portal](#).

If any portion of the proposed SBIR effort is subject to EAR, your firm must submit for and obtain the proper export licenses through the Department of Commerce's Bureau of Industry and Security on-line system, [SNAP-R](#). Failure to obtain the proper export licenses in a timely manner will significantly delay contract award, become grounds for cancellation of the contract action, or become grounds for termination of an existing contract.

Topics under this announcement may be subject to ITAR/EAR and may be identified as such. However, export control compliance statements found in this document are not meant to be all inclusive. They do not remove any liability from the applicant to comply with applicable ITAR or EAR export control restrictions. For additional guidance on export control considerations, SBCs are encouraged to review the [SBIR|STTR ITAR tutorial](#), which provides an overview of ITAR and EAR and their applicability to federally funded research.

3.3 Classified Proposals

Classified proposals will not be accepted under the DoW SBIR Program. If topics require classified work during Phase II, the proposing SBC must have a facility clearance to perform the work. For more information on facility and personnel clearance procedures and requirements, please visit the Defense Counterintelligence and Security Agency (DCSA) website at: <https://www.dcsa.mil/mc/ctp/fc/>.

3.4 Promotional Materials

Promotional and non-project related discussion is discouraged, and additional information provided via website links or on computer disks, CDs, DVDs, video tapes or any other medium will not be accepted or considered in the proposal evaluation.

3.5 Prior, Current, or Pending Support of Similar Proposals or Awards

While it is permissible, with proposal notification, to submit identical proposals or proposals containing a significant amount of essentially equivalent work for consideration under numerous federal program solicitations, it is unlawful to enter negotiation for contracts requiring essentially equivalent effort. If there is any question concerning prior, current, or pending support of similar proposals or awards, it must be disclosed to the soliciting agency or agencies as early as possible and declared on the proposal cover sheet.

3.6 Marking Proprietary Proposal Information

Proposing SBCs that include data in their proposals they do not want disclosed to the public for any purpose, or only used for government evaluation purposes, shall:

- a. Mark the first page of each volume of the proposal submission with the following legend:

"This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this proposing SBC as a result of-or in connection with-the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from

another source without restriction. The data subject to this restriction are contained in pages [insert numbers or other identification of sheets]"; and

- b. Mark each sheet of data it wishes to restrict with the following legend:

"Use or disclosure of data contained on this page is subject to the restriction on the first page of this volume."

The DoW assumes no liability for disclosure or use of unmarked data and may use or disclose such data for any purpose.

Restrictive notices notwithstanding, support contractors may handle proposals and final reports submitted through DSIP for administrative purposes only; they are required to adhere to appropriate non-disclosure agreements.

3.7 Phase I Proposal Instructions

a. Proposal Cover Sheet (Volume 1)

The proposal cover sheet is prepared on DSIP. The cover sheet must include a brief technical abstract that describes the proposed R&D project and an anticipated benefits and potential commercial applications discussion. Each section should be no more than 3,000 characters.

Do not include proprietary or classified information in the proposal cover sheet. If your proposal is selected for negotiation and possible award, the technical abstract and anticipated benefits discussion may be publicly released online. DSIP will assign a proposal number once the cover sheet is saved. You may modify the cover sheet as needed until the topic closes.

NOTE: the amounts listed in the percentage of work (POW) certification question on the proposal cover sheet are derived from SBC-entered information in the cost volume (Volume 3). Details on the calculation can be viewed in DSIP during proposal submission.

If the POW calculations fall below eligibility requirements, the funding agreement officer must upload either an explanatory letter or approval to the certification question to complete the submission. Some DoW Services/Components will not accept any deviations from the POW minimum requirements. Please refer to the Service/Component instructions regarding deviations acceptance to the POW requirements.

b. Technical Volume Format (Volume 2)

1. **File Type.** The Technical Volume must be a single PDF file, including graphics. Perform a virus check before uploading the technical volume file. If a virus is detected, the proposal may be rejected. **Do not lock, password protect or encrypt the uploaded file. Do not include or embed active graphics, such as videos, moving pictures, or other similar media, in the document.**
2. **Length.** It is the proposing SBC's responsibility to verify that the technical volume does not exceed the page limit after upload to DSIP. Please refer to Service/Component-specific instructions for how a technical volume is handled if the stated page count is exceeded. Some Services/Components will reject the entire technical proposal if the proposal exceeds the stated page count.
3. **Layout.** Number all proposal pages consecutively. Submit a direct, concise, and informative research or R&D proposal (no type smaller than 10-point on standard 8-1/2" x

11" paper with one-inch margins, including the header). Each header on each page in the technical volume should contain the proposing SBC's name, topic number, and the DSIP-assigned proposal number from the cover sheet.

c. Technical Volume Content (Volume 2)

The Technical Volume should cover the following items in the order given below:

1. Identification and Significance of the Problem or Opportunity
2. Phase I Technical Objectives
3. Phase I Statement of Work
4. Related Work
5. Relationship with Future Research or Research and Development
6. Commercialization Strategy
7. Key Personnel
8. Foreign Citizens
9. Facilities/Equipment
10. Subcontractors/Consultants
11. Prior, Current, or Pending Support of Similar Proposals or Awards
12. Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software

A Phase I technical volume template is available in Appendix A to provide details and helpful guidelines for completing each section of your Phase I technical proposal.

Refer to the Service/Component-specific Direct to Phase II instructions for details on proposal preparation and technical volume content requirements.

d. Cost Volume Content (Volume 3)

Complete the cost volume using the DSIP cost volume form. Some items in the cost breakdown may not apply to the proposed project. There is no need to provide information on each individual item; make sure to provide enough information for evaluators to understand the requested funds' planned use if a contract is awarded.

1. List all key personnel's names and include their individual hours dedicated to the project as direct labor.
2. While special tooling and test equipment and material cost may be included under Phase I, equipment and material inclusion will be carefully reviewed relative to need and appropriateness for the work proposed. Special tooling and test equipment purchases must, in the Service/Component contracting officer's opinion, be advantageous to the U.S. Government and should relate directly to the specific topic. These may include such items as innovative instrumentation or automatic test equipment. Title to property the U.S. Government furnished or acquired with government funds will be vested with the DoW Service/Component, unless it is determined that title transfer to the contractor would be more cost effective than the DoW Service/Component equipment recovery.
3. Cost for travel funds must be justified and related to the project needs.
4. Cost sharing is permitted for proposals under this solicitation; cost sharing is not required, nor will it be an evaluation factor in the Phase I proposal consideration.
5. A Phase I option (if applicable) should be fully costed separately from the Phase I (base) approach.

6. All subcontractor costs and consultant costs, such as labor, travel, equipment, materials, must be detailed at the same level as prime contractor costs. Provide detailed subcontractor costs substantiation in your cost proposal. Supporting Documents (Volume 5) may be used if additional space is needed.

If a proposal is selected for negotiation and possible award, you must be prepared to submit further documentation to the Service/Component contracting officer to substantiate costs (e.g., a cost estimates explanation for equipment, materials, and consultants or subcontractors). For more information about cost proposals and accounting standards, see visit [DCAA's website](#).

e. **Company Commercialization Report (Volume 4)**

The company commercialization report (CCR) allows companies to report funding outcomes resulting from prior SBIR and STTR awards. SBA requires SBIR and STTR awardees to update and maintain their organization's CCR on SBIR.gov. Commercialization information is required upon the last deliverable's completion under the funding agreement. Thereafter, SBIR and STTR awardees are requested to voluntarily update the information in the database annually for a minimum 5-year period.

If the proposing SBC has prior DoW and/or non-DoW Phase I and/or Phase II SBIR/STTR awards, regardless of whether the project has any commercialization to date, the firm admin must download the CCR's PDF copy from SBIR.gov and upload it to DSIP's "Firm Forms" section. The DSIP firm admin completes the firm forms are completed and are applies them to all proposals the proposing SBC submits. To fulfill the DSIP CCR requirement complete the following:

1. Log into the firm account at <https://www.sbir.gov/>.
2. Navigate to My Dashboard > My Documents to view or print the information currently contained in the "Company Registry Commercialization Report."
3. Create or update the commercialization record, from the company dashboard, scroll to the "My Commercialization" section and click the "Create/Update Commercialization" tab under "Current Report Version." Please refer to the "Instructions" and "Guide" documents contained on dashboard for more detail on completing and updating the CCR.
Ensure the report is certified and submitted.
4. Click the "Company Commercialization Report" PDF under the dashboard's "My Documents" section to download the CCR PDF.
5. Upload the CCR PDF (downloaded from SBIR.gov in previous step) to the "Company Commercialization Report" in DSIP's "Firm Forms" section. The firm admin must complete this upload action.

In Volume 4 of the DSIP proposal submission, the proposing SBC will be prompted to answer: "Do you have a new or revised Company Commercialization Report to upload?" There are three possible courses of action:

- a. If the proposing SBC has prior DoW and/or non-DoW Phase I and/or Phase II SBIR/STTR awards and **has a new or revised CCR from SBIR.gov to upload to DSIP**, select YES.
 1. If the user is the firm admin, they can upload the CCR PDF from SBIR.gov directly on this page. It will also be updated in the "Firm Forms" and be associated with all new or in-progress proposals the proposing SBC submitted. If the user is not the

firm admin, they will receive a message that they do not have access and must contact the firm admin to complete this action.

2. **WARNING:** Uploading a new CCR under the DSIP “Firm Forms” section or clicking “Save” or “Submit” in one proposal’s Volume 4 is considered a change for ALL proposals under any open solicitations. If a proposing SBC has previously certified and submitted any Phase I or Direct to Phase II proposals under ***any*** solicitation ***still open***, those proposals will be automatically reopened. Proposing SBCs will have to recertify and resubmit affected proposals. If a proposing SBC does not recertify or resubmit affected proposals, they will not be considered fully submitted and will not be evaluated.
- b. If the proposing SBC has prior DoW and/or non-DoW Phase I and/or Phase II SBIR/STTR awards, and **no new or revised CCR from SBIR.gov to upload to DSIP**, select NO.
 1. If a prior CCR was uploaded to the “Firm Forms”, the proposing SBC will see a file dialog box at the bottom of the page and can view the previously uploaded CCR. This read-only access allows the proposing SBC to confirm the firm admin uploaded the CCR.
 2. If no file dialog box appears at the bottom of the page **there is no previously uploaded CCR in the DSIP “Firm Forms.”** To fulfill the DSIP CCR requirement the firm admin must follow steps 1-5 listed above to download a CCR PDF from SBIR.gov and upload it to the DSIP “Firm Forms” to be included with all proposal submissions.
- c. If the proposing SBC has **NO** prior DoW and/or non-DoW Phase I and/or Phase II SBIR/STTR awards, the CCR upload from SBIR.gov is not required and SBC will select NO. The proposal’s CCR section will be marked complete.

Please refer to the Service/Component-specific instructions for details on how the CCR information will be considered during proposal evaluations.

f. Supporting Documents (Volume 5)

Volume 5 is provided for proposing SBCs to submit additional documentation to support the Coversheet (Volume 1), Technical Volume (Volume 2), and the Cost Volume (Volume 3).

The following documents may be included in Volume 5, if applicable to the proposal. Refer to Service/Component-specific instructions for additional Volume 5 requirements. **Reminder: A completed proposal submission in DSIP does NOT indicate the mandatory supporting documents have been uploaded in accordance with the Service/Component-specific instructions.**

1. Letters of support
2. Additional cost information
3. Funding agreement certification
4. Technical data rights (assertions)
5. Lifecycle certification
6. [Allocation of rights](#)
7. [Verification of Eligibility of Small Business Joint Ventures](#), if applicable
8. DD Form 2345, Militarily Critical Technical Data Agreement, if applicable (see section 3.2)

g. Fraud, Waste, and Abuse Training (Volume 6)

The fraud, waste, and abuse (FWA) training is **required** for DoW SBIR/STTR proposals. FWA training provides information on what represents FWA in the SBIR/STTR program, the most common mistakes that lead to FWA, as well as the penalties and ways to prevent FWA. The training currently consists of a 3-page PDF, consistent with the tutorial provided by the SBA. This training material must be thoroughly reviewed once per year and can be found [here](#) and in the DSIP proposal submission module for Volume 6. Plan time to review the tutorial during completion of Volume 6, prior to the proposal submission deadline. The individual designated as the Proposal Owner must complete this training on behalf of the proposing small business.

h. Disclosures of Foreign Affiliations or Relationships to Foreign Countries (Volume 7)

In accordance with 15 U.S.C. §638(vv) and the SBA SBIR/STTR Policy Directive, the DoW will review all proposals submitted in response to this solicitation to assess security risks of SBCs seeking a federally funded award. SBCs must complete the DSIP Volume 7 webform “Disclosures of Foreign Affiliations or Relationships to Foreign Countries” (NOTE: PDF uploads are no longer accepted). The corporate official cannot certify and submit the full proposal until the Volume 7 webform is fully completed and submitted.

Please be aware that the “Disclosures of Foreign Affiliations or Relationships to Foreign Countries” form WILL NOT be accepted as a supporting document in DSIP’s Volume 5 proposal submission. Do not upload any previous versions of this form to Volume 5.

For additional details, please refer to Section 2.5. The disclosure questions are below:

1. Is any owner or covered individual of the applicant or awardee party to any malign foreign talent recruitment program? If yes, disclose the first and last name of each owner or covered individual, identify their role (i.e., owner or covered individual), and the malign foreign talent recruitment program.
2. Is there a parent company, joint venture, or subsidiary, of the applicant or awardee that is based in or receives funding from, any foreign country of concern? If yes, disclose the name, full address, applicant or awardee relationships (i.e., parent company, joint venture, or subsidiary) of each entity based in, or funded by, any foreign country of concern.
3. Does the applicant or awardee have any current or pending contractual or financial obligation or other agreement specific to a business arrangement, or joint venture-like arrangement with an enterprise owned by a foreign state or any foreign entity? If yes, disclose the name of each enterprise or foreign entity, type of obligation, agreement, or arrangement (i.e., contractual, financial, or other), description of obligation, agreement, or arrangement, and the foreign state(s) and/or the country of the foreign entity (or entities).
4. Is the applicant or awardee wholly owned in a foreign country? If yes, disclose the foreign country.
5. Does the applicant or awardee have any venture capital or institutional investment? If yes, proceed to question 5a. If no, proceed to question 6.
 - 5a. Does the investing entity have a general partner or any other individual holding a leadership role who has a foreign affiliation with any foreign country of concern? If yes or unable to determine, disclose the venture capital or institutional investing entity's name, the percentage of ownership obtained by the investing entity, and the type of

investment (i.e., equity, debt, or combination of equity and debt).

6. During the previous 5-year period, did the applicant or awardee have any technology licensing or intellectual property sales or transfers, to a foreign country of concern? If yes, disclose the name, address, and country, of the institution or entity that licensed, purchased, or received the technology or intellectual property.
7. Is there any foreign business entity, offshore entity, or entity outside the United States related to the applicant or awardee? If yes, disclose the entity name, relationship type (i.e., foreign business entity, offshore entity, entity outside the United States), description of the relationship to the applicant or awardee, and entity address and country.
8. Does the applicant or awardee have an owner, officer, or covered individual that has a foreign affiliation with a research institution located in a foreign country of concern? If yes, disclose the first and last name of each owner, officer, or covered individual that has a foreign affiliation with a foreign country of concern, identify their role (i.e., owner, officer, or covered individual), and the name of the foreign research institution and the foreign country of concern where it is located.

3.8 Phase II Proposal Information

Only Phase I awardees may submit Phase II proposals. Phase II proposals submission must follow individual Service/Component instructions. Awarding DoW Services/Component, either in the Phase I award or via subsequent notification, will provide details on Phase II proposal due date, content, and submission requirements. If a proposing SBC submits their Phase II proposal prior to the individual Service/Component's dates, it may be rejected without evaluation.

Due to specific limitations on the amount of funding and number of awards awarded to a particular proposing SBC per topic using SBIR/STTR program funds, head of agency determinations are required before a different agency may make an award using another agency's topic. This limitation does not apply to Phase III funding. Please contact your original sponsoring agency before submitting a Phase II proposal to an agency other than the one who sponsored the original topic.

SBIR/STTR Policy Directive Section 4(b)(1)(i) allows that, at the agency's discretion, projects awarded a Phase I under a solicitation for SBIR may transition in Phase II to STTR and vice versa. A proposing SBC wishing to transfer from one program to another must contact their designated technical monitor to discuss the reasons for the request and the agency's ability to it. The transition may be proposed prior to award or during the Phase II effort performance. Agency disapproval of a request to change programs shall not be grounds for granting relief from any contractual performance requirement. All approved transitions between programs must be noted in the contracting officer-signed Phase II award or award modification that indicates the removal or addition of the research institution and the revised percentage of work requirements.

3.8.1 Phase II Commercialization Strategy

At a minimum, the commercialization strategy must address the following five questions:

- a. What will be the first product to use this technology?
- b. Who will be the customers, and what is the estimated market size?
- c. How much money is needed to bring the technology to market, and how will that money be raised?
- d. Does the proposing SBC contain marketing expertise and, if not, how will the SBC acquire that expertise?
- e. Who are the proposing SBC's competitors, and what is the price and/or quality advantage over those competitors?

The commercialization strategy must also include a schedule showing the anticipated quantitative commercialization results at 1) one year after the Phase II project starts, 2) at Phase II completion, and 3) after Phase II completion (i.e., additional investment amount, sales revenue, etc.). After Phase II award, the proposing SBC is required to report actual sales and investment data in its SBA company commercialization report via SBIR.gov's "My Dashboard" on a minimum annual basis. Please refer to the Service/Component-specific instructions for guidance on formatting, page count and other details.

3.8.2 Phase II Adequate Accounting System

To reduce the small business's risk and avoid potential contracting delays, companies interested in pursuing Phase II SBIR contracts and other contracts of similar size with the DoW, may require an adequate accounting system in place per General Accepted Accounting Principles, Generally Accepted Government Auditing Standards, Federal Acquisition Regulation (FAR) and Cost Accounting Standards. The Defense Contract Audit Agency (DCAA) will audit the accounting system. See DCAA's website for requirements and standards, the [audit process overview](#), and a pre-award [system adequacy checklist](#).

4.0 METHOD OF SELECTION AND EVALUATION CRITERIA

4.1 Evaluation Process

All proposals will be evaluated and judged on a competitive basis in terms of technical capability and technical value. Proposals will be initially screened to determine responsiveness to the topic objective. Proposals passing this initial screening will be technically evaluated by engineers, scientists, or subject matter experts to determine the most promising technical and scientific approaches. As a common statement of work does not exist, each proposal will be assessed on the merit of the approach in achieving the technical objectives established in the topic.

4.2 Evaluation Criteria

Proposals will be evaluated based on the criteria outlined below, unless otherwise specified in the Service/Component-specific instructions. Selections will be based on a determination of the overall technical value of each proposal and an evaluation of the cost volume, with the appropriate method of analysis given the contract type to be awarded, for selection of the proposal(s) most advantageous to the Government, considering the following factors which are listed in descending order of importance:

- a. The soundness, technical merit, and innovation of the proposed approach and its incremental progress toward topic or subtopic solution.
- b. The qualifications of the proposed principal/key investigators, supporting staff, and consultants. Qualifications include not only the ability to perform the R&D but also the ability to commercialize the results.
- c. The potential for commercial (government or private sector) application and the benefits expected to accrue from this commercialization.

Cost or budget data submitted with the proposals will be considered during evaluation.

Technical reviewers will base their conclusions only on information contained in the proposal. Do not assume reviewers are acquainted with the proposing SBC, key individuals, or any referenced experiments. Relevant supporting data such as journal articles, literature, including Government publications, etc., should be included based on requirements listed in Service/Component-specific instructions.

4.3 Proposal Status & Feedback

Proposing SBCs will be notified of selection or non-selection status for an award by the DoW Service/Component that originated the topic no later than 90 days of the closing date for this solicitation. Please refer to the Service/Component-specific instructions for details.

After final selection decisions have been announced, the SBC may be provided proposal feedback in the form of a written debrief. This debriefing process varies across the DoW Services/Components. Please refer to the Service/Component-specific instructions for details on the debriefing processes.

4.4 Award Denials

The DoW will not make an award under the SBIR program if it determines:

- a. The SBC submitting the proposal
 - i. has an owner or covered individual that is party to a malign foreign talent recruitment program;
 - ii. has a business entity, parent company, or subsidiary located in the People's Republic of China or another foreign country of concern; or
 - iii. has an owner or covered individual that has a foreign affiliation with a foreign entity located in the People's Republic of China or another foreign country of concern; and
- b. The relationships and commitments described in clauses (i) through (iii) of subparagraph (A)
 - i. interfere with the capacity for DoW-supported activities to be carried out;
 - ii. create duplication with DoW-supported activities;
 - iii. present concerns about conflicts of interest;
 - iv. were not appropriately disclosed to the DoW;
 - v. violate Federal law or terms and conditions of DoW-awarded contracts or other agreements; or
 - vi. pose a risk to national security.

4.5 Pre-Award and Post Award Solicitation Protests

Interested parties have the right to protest via procedures in FAR Subpart 33.1; protests exclusively related to this solicitation's terms must be served to: osd.ncr.ousd-r-e.mbx.SBIR-STTR-Protest@mail.mil

For protests filed with the Government Accountability Office (GAO), a copy of the protest shall be submitted to the email address listed above (pre-award ONLY) or DoW Service/Component POC (post-selection/award decision ONLY) within one day of filing with the GAO. Protests of small business status of a selected proposing SBC may also be made to the SBA via the procedures in FAR § 19.302.

For the purposes of a protest related to a particular topic selection, non-selection or award decision, protests should be served to the point-of-contact (POC) listed in the instructions of the DoW Component that authored the topic.

5.0 ADDITIONAL CONSIDERATIONS

5.1 Award Information

The number of awards will be consistent with the Component's RDT&E budget. No awards will be made until evaluation of all qualified proposals for a specific topic is complete.

Each proposal selected for negotiation and possible award will be funded under a negotiated instrument and may include a reasonable fee or profit consistent with normal profit margins consistent with normal profit margins provided to profit-making proposing SBCs for R/R&D work.

Contract value varies among the DoW Services/Components; it is important for proposing SBCs to review Service/Component-specific instructions regarding award size.

The SBA SBIR/STTR Policy Directive, Section 7(c)(1)(ii), states agencies should issue the award no more than 180 days after the closing date of the topic.

5.2 Contract Requirements

Upon contract award, the contractor will be required to make certain legal commitments through acceptance of U.S. Government contract clauses in the Phase I contract. The examples below are illustrative of the types of provisions the Federal Acquisition Regulation requires in the Phase I contract. This is not an exhaustive provisions list that could be included in Phase I contracts, nor does it contain specific clause wording. Appendix C of this solicitation contains additional potential required Federal Acquisition Regulation (FAR) and Defense Federal Acquisition Regulation Supplement (DFARS) clauses. Copies of complete general provisions will be made available prior to award.

While this solicitation does not address all potential clauses for resultant funding agreements, proposers are specifically directed to the Defense Federal Acquisition Regulation Supplement (DFARS) clause 252.204-7021, Cybersecurity Maturity Model Certification (CMMC) Requirements. This clause update reflects significant changes to cybersecurity requirements. Additional information provided in section 2.13 of this solicitation.

Examples of general provisions:

- a. **Standards of Work.** Work performed under the Funding Agreement must conform to high professional standards.
- b. **Inspection.** Work performed under the Funding Agreement is subject to Government inspection and evaluation at all times.
- c. **Examination of Records.** The Comptroller General (or a duly authorized representative) must have the right to examine any pertinent records of the Awardee involving transactions related to this Funding Agreement.
- d. **Default.** The Federal Government may terminate the Funding Agreement if the contractor fails to perform the work contracted.
- e. **Termination for Convenience.** The Funding Agreement may be terminated at any time by the Federal Government if it deems termination to be in its best interest, in which case the Awardee will be compensated for work performed and for reasonable termination costs.
- f. **Disputes.** Any dispute concerning the Funding Agreement that cannot be resolved by agreement must be decided by the contracting officer with right of appeal.
- g. **Contract Work Hours.** The Awardee may not require an employee to work more than 8 hours a day or 40 hours a week unless the employee is compensated accordingly (for example, overtime pay).
- h. **Equal Opportunity.** The Awardee will not discriminate against any employee or applicant for employment because of race, color, religion, sex, or national origin.
- i. **Equal Opportunity for Veterans.** The Awardee will not discriminate against any employee or application for employment because he or she is a disabled veteran or veteran of the Vietnam era.
- j. **Equal Opportunity for People with Disabilities.** The Awardee will not discriminate against any employee or applicant for employment because he or she is physically or intellectually disabled.
- k. **Officials Not to Benefit.** No Federal Government official may benefit personally from the SBIR/STTR Funding Agreement.
- l. **Covenant Against Contingent Fees.** No person or agency has been employed to solicit or secure the Funding Agreement upon an understanding for compensation except bona fide

employees or commercial agencies maintained by the Awardee for the purpose of securing business.

- m. **Gratuities.** The Funding Agreement may be terminated by the Federal Government if any gratuities have been offered to any representative of the Government to secure the award.
- n. **Patent Infringement.** The Awardee must report each notice or claim of patent infringement based on the performance of the Funding Agreement.
- o. **American Made Equipment and Products.** When purchasing equipment or a product under the SBIR/STTR Funding Agreement, purchase only American-made items whenever possible.

5.3 Agency Recovery Authority and Ongoing Reporting

In accordance with Section 5 of the SBIR and STTR Extension Act of 2022, the DoW will:

- a. require an SBC receiving an award under its SBIR program to repay all amounts received from the federal agency under the award if,
 - 1. the SBC makes a material misstatement that the federal agency determines poses a risk to national security; or
 - 2. there is a change in the SBC's ownership, entity structure, or other substantial change in circumstances that the federal agency determines poses a risk to national security; and
- b. require an SBC receiving an award under its SBIR program to regularly report to the federal agency and the administration throughout the duration of the award on
 - 1. any change to a disclosure required under the Disclosures of Foreign Affiliations or Relationships to Foreign Countries form;
 - 2. any material misstatement made under paragraph (A) above; and
 - 3. any change described in paragraph (B) above.

5.4 Copyrights

With prior written permission of the contracting officer, the awardee may copyright (consistent with any appropriate national security considerations) material developed with DoW support. DoW receives a royalty-free license for the Federal Government and requires that each publication contain an appropriate acknowledgment and disclaimer statement.

5.5 Patents

SBCs normally may retain the principal worldwide patent rights to any invention developed with U.S. Government support. The government receives a royalty-free license for its use, reserves the right to require the patent holder to license others in certain limited circumstances, and requires that anyone exclusively licensed to sell the invention in the United States must normally manufacture it domestically. 35 U.S.C. § 205 authorizes that the government will not make public any information disclosing a government-supported invention for a period of five years to allow the awardee to pursue a patent. See also Section 6.8, Invention Reporting.

5.6 Invention Reporting

SBIR awardees must report inventions to the Service/Component within two months of the inventor's report to the awardee, via either paper documentation submission, including fax, or through the Edison Invention Reporting System at www.iedison.gov for participating agencies.

5.7 Technical Data Rights

Rights in technical data, including software, developed under the terms of any contract resulting from proposals submitted in response to this solicitation generally remain with the contractor, except that the U.S. Government obtains a royalty-free license to use such technical data only for government purposes during the period commencing with contract award and ending not less than twenty years after that date. This data should be marked with the restrictive legend specified in DFARS 252.227-7018 (JAN 2025).

Upon expiration of the twenty-year restrictive license, the government has government purpose rights in the SBIR data. During the license period, the U.S. Government may not release or disclose SBIR data to any person other than its support services contractors except: (1) for evaluation purposes; (2) as expressly permitted by the contractor; or (3) a use, release, or disclosure that is necessary for emergency repair or overhaul government-operated items.

If a proposing SBC plans to submit assertions in accordance with DFARS 252.227-7017 (JAN 2025), those assertions must be identified and assertion of use, release, or disclosure restriction must be included with your proposal submission, at the end of the technical volume. The contract cannot be awarded until assertions are approved.

5.8 Final Technical Reports - Phase I through Phase III

- a. **Content:** A final report is required for each project phase. The reports must contain in detail the project objectives, work performed, results obtained, and estimates of technical feasibility. A completed SF 298, "Report Documentation Page," will be used as the first page of the report. The DoW Service/Component also may require monthly status and/or progress reports.
- b. **SF 298 Form "Report Documentation Page" Preparation:**
 - a. If desirable, the proposing SBC may also use language from its Phase II proposal to cover Phase I progress in the final report.
 - b. For each unclassified report, the proposing SBC submitting the report should fill in Block 12 (Distribution/Availability Statement) of the SF 298, "Report Documentation Page," with the following statement: "Distribution authorized to U.S. Government only; Proprietary Information, (Date of Determination). Other requests for this document shall be referred to the Service/Component SBIR Program Office."

Note: Data developed under a SBIR contract is subject to SBIR Data Rights, under which DFARS 252.227-7018 (JAN 2025) (see Section 5.7, Technical Data Rights) provides protection. The sponsoring DoW activity, after reviewing the proposing SBC's entry in Block 12, has final responsibility for assigning a distribution statement.

For additional information on distribution statements see the following Defense Technical Information Center (DTIC) [website](#).

- c. Block 14 (Abstract) of the SF 298, "Report Documentation Page" must include as the first sentence, "Report developed under SBIR contract for topic [insert solicitation topic number. [Follow with the topic title, if possible.]]" The abstract must identify the work's purpose and briefly describe the work conducted, the findings or results, and the effort's potential applications. **Since DoW will publish the abstract, it must not contain any proprietary or classified data, and type "UU" in Block 17.**
- d. Block 15 (Subject Terms) of the SF 298 must include the term "SBIR Report".
- c. **Submission:** In accordance with DFARS 252.235-7011, submit an electronic copy of the approved final scientific or technical report, not a summary, delivered under the contract to the Defense Technical Information Center (DTIC) through the web-based input system at <https://discover.dtic.mil/submit-documents/> as required by DoD Instruction 3200.12, DoW Scientific and Technical Information Program (STIP). Include a completed Standard Form (SF) 298, Report Documentation Page, in the document, or complete the web-based SF 298. Additional submission resources are available [here](#).

Delivery will normally be within 30 days after completion of the Phase I technical effort.

Other requirements regarding reports and/or other deliverables submission will be defined in each contract's contract data requirements list (CDRL). Special instructions for submitting CLASSIFIED reports will be defined in the contract's delivery schedule.

DO NOT email classified or controlled unclassified reports, or reports containing SBIR Data Rights protected under DFARS 252.227-7018 (JAN 2025).

6.0 PROPOSAL SUBMISSION

6.1 Submission Details

DSIP is the official portal for DoW SBIR/STTR proposal submission. Proposers are required to submit proposals via DSIP; proposals submitted by any other means will be disregarded. Detailed guidance on DSIP proposal submission is found [here](#).

Deadline for Receipt: UNLESS OTHERWISE STATED WITHIN THE TOPIC, complete proposals must be certified and submitted in DSIP no later than 12:00p.m. ET on the close date of the release listed on the cover page of this solicitation. Proposals cannot be submitted in DSIP after the deadline is reached and will not be accepted or evaluated.

The final proposal submission includes successful completion of all firm level forms, all required proposal volumes, and electronic corporate official certification. Although signatures are not required on the electronic forms at the time of submission, the proposal must be certified electronically by the corporate official for it to be considered submitted. If the proposal is selected for negotiation and possible award, the DoW Component program will contact the proposing SBC for signatures prior to award.

Please plan to submit proposals as early as possible to allow time for troubleshooting any possible issues before the topic close. DSIP Support is unable to assist with submission issues once a deadline has passed and cannot provide submission extensions. DoW is not responsible for missed proposal submission due to system latency.

If the proposal status is "In Progress" or "Ready to Certify" it will NOT be considered submitted, even if all volumes are added prior to the topic close date. The proposing SBC may modify all proposal volumes prior to the topic close date.

6.2 Technical Questions

- a. **Direct Contact with Topic Authors.** During the pre-release period, the names of the topic authors, their phone numbers and/or email addresses are published with the topic on the [DSIP Topics and Topic Q&A](#) page. During this time, proposing SBCs can contact topic authors via telephone or email to ask technical questions about specific solicitation topics. Questions must be limited to specific information related to understanding a particular topic's requirements. Proposing SBCs may not ask for advice or guidance on solution approach and may not submit additional material to the topic author.

If information provided during an exchange with the topic author is deemed necessary for proposal preparation, that information will be made available to all parties through DSIP Topic Q&A.

After the pre-release period, questions must be asked through DSIP Topic Q&A as described below. No further direct contact is allowed between proposing SBCs and topic authors, unless the topic author is responding to a question submitted during the pre-release period.

- b. **DSIP Topic Q&A.** Proposing SBCs may submit written questions through DSIP Topic Q&A [here](#), where all questions and answers are posted on a non-attribution basis for public viewing. DSIP Topic Q&A opens on the pre-release date and closes two weeks prior to the topic close date.

Proposing SBCs may use the topic search feature on DSIP to locate a topic of interest. Use the form at the bottom of the topic description, enter and submit the question. Answers are generally posted within seven business days of question submission and also e-mailed directly to the inquirer.

Questions submitted through the DSIP Topic Q&A are limited to technical information focused on understanding a topic's requirements. Any other questions, such as asking for advice or guidance on solution approach, or administrative questions, such as SBIR or STTR program eligibility, technical proposal/cost proposal structure and page count, budget and duration limitations, or proposal due date are not appropriate and will not receive a response; for administrative questions, refer to a topic's Service/Component-specific instructions.

Once the proposal submission closes, no communication of any kind is allowed either with the topic author or through topic Q&A regarding submitted proposals.

Throughout the topic solicitation period, proposing SBCs should frequently monitor DSIP for updates and amendments to the topics and DSIP Topic Q&A for questions and answers.

7.0 Participating Component Instructions & Research Topics

The following section contains all Component-specific proposal preparation instructions and research topics this BAA.

DoW 2026 SBIR BAA **Release 4**

July 01, 2026: Topics Pre-Release

July 22, 2026: Topics Open; DoW begins accepting proposals in DSIP

August 12, 2026: DSIP Topic Q&A closes to new questions at 12:00 p.m. ET

August 19, 2026: Topics Close; Deadline for receipt of proposals is 12:00 p.m. ET

Participating Services/Components:

- Department of the Navy (Navy)
- Defense Advanced Research Projects Agency (DARPA)
- Missile Defense Agency (MDA)
- Office of the Secretary of War – Quantum Science (OSW – QS)
- Office of the Secretary of War – Reliance 21 (OSW – R21)
- Office of the Secretary of War – Technology Transfer, Transition and Commercial Partnerships (OSW – T3CP)
- United States Special Operations Command (USSOCOM)

Appendix A TECHNICAL PROPOSAL TEMPLATE (VOLUME 2)

INSTRUCTIONS

These instructions and template apply to DoW SBIR/STTR Phase I topics and provide general guidelines for completing the Phase I Technical Volume. Information provided in the Service/Component-specific instructions for the topic of interest take precedence over any instructions listed below.

The template (beginning on the following page) is the format model that may be used to prepare the Phase I Technical Volume. Do not include the instructions provided on this page or any bracketed [] guidance in the template.

Disclosure

Offerors that include in their proposals data which they do not want disclosed to the public for any purpose, or used by the U.S. Government except for evaluation purposes, must:

- (1) Mark the first page of each Volume of the Submission with the following legend:

"This proposal includes data that must not be disclosed outside the Government and must not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of-or in connection with-the submission of this data, the Government has the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in pages [insert numbers or other identification of sheets]";

- (2) Mark each sheet of data it wishes to restrict with the following legend:

"Use or disclosure of data contained on this page is subject to the restriction on the first page of this volume."

Format

The Technical Volume shall meet the following requirements:

- Please refer to Service/Component-specific topic instructions for the page limit and how a technical volume is handled if the stated page count is exceeded. It is the proposing firm's responsibility to verify that the Technical Volume does not exceed the page limit after upload to DSIP. Unless otherwise noted, all content in the Technical Volume will count toward the limit.
- Single column format single-spaced typed lines.
- Standard 8 ½" x 11" paper format.
- Page margins one inch on all sides. A header and footer may be included in the one-inch margin.
- **The header on each page of the Technical Volume should contain your company name, topic number, and DSIP-assigned proposal number.**
- No font smaller than 10-point. For headers, footers, imbedded tables, figures, images, or graphics that include text, a font size of smaller than 10-point is allowable, though proposers are cautioned that the text may be unreadable by evaluators.

Do not lock or encrypt the uploaded file. Do not include or embed active graphics such as videos, moving pictures, or other similar media in the document.

Delete this instruction page and begin the Technical Volume starting with the following page.

[Title]

Volume 2: Technical Volume

[Note: Remove the disclosure statement below if not applicable to your proposal. Refer to Instructions.]

This proposal includes data that must not be disclosed outside the Government and must not be duplicated, used, or disclosed – in whole or in part – for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of – or in connection with – the submission of this data, the Government has the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in pages <insert numbers or other identification of sheets>.

1. Identification and Significance of the Problem or Opportunity.

[Define the specific technical problem or opportunity addressed and its importance.]

2. Phase I Technical Objectives.

[Enumerate the specific objectives of the Phase I work, including the questions the research and development effort will try to answer to determine the feasibility of the proposed approach.]

3. Phase I Statement of Work (include Subcontractors and/or Research Institutions).

(a) [Provide an explicit, detailed description of the Phase I approach. If a Phase I option is required or allowed by the Component (refer to Component-specific instructions for topic of interest), describe appropriate research activities which would commence at the end of Phase I base period should the Component elect to exercise the option. The Statement of Work should indicate what tasks are planned, how and where the work will be conducted, a schedule of major events, and the final product(s) to be delivered. The Phase I effort should attempt to determine the technical feasibility of the proposed concept. The methods planned to achieve each objective or task should be discussed explicitly and in detail. This section should be a substantial portion of the Technical Volume.

(b) The solicitation may contain topics that have been identified by the Program Manager as research or activities involving Human/Animal Subjects and/or Recombinant DNA. If Phase I performance includes performance of these kinds of research or activities, please identify the applicable protocols and how those protocols will be followed during Phase I. Please note that funds cannot be released or used on any portion of the project involving human/animal subjects or recombinant DNA research or activities until all of the proper approvals have been obtained. **SBCs proposing research involving human and/or animal use are encouraged to separate these tasks in the technical proposal and cost proposal in order to avoid potential delay of contract award.**]

4. Related Work.

[Describe significant activities directly related to the proposed effort, including any conducted by the principal investigator, the proposing firm, consultants, or others. Describe how these activities interface with the proposed project and discuss any planned coordination with outside sources. The Technical Volume must persuade evaluators of the proposer's awareness of the state of the art in the topic. Describe any previous work not directly related but similar to the proposed effort. Provide the following: (1) a short description, (2) the client for which work was performed (including the Government Point of Contact to be contacted including e-mail address and phone number), and (3) date of performance including project completion.]

5. Relationship with Future Research or Research and Development.

- (a) [State the anticipated results of the proposed approach if the project is successful.
- (b) Discuss the significance of the Phase I effort in providing a foundation for a Phase II research or research and development effort.
- (c) Identify the applicable clearances, certifications and approvals required to conduct Phase II testing. Outline the plan for ensuring timely completion of stated authorizations in support of a Phase II research or research and development effort.]

6. Commercialization Strategy.

[Describe in approximately one page the SBC's strategy for commercializing this technology in DoW, other Federal Agencies, and/or private sector markets. Provide specific information on the market need the technology will address and the size of the market. Also include a schedule showing the quantitative commercialization results from the project that your company expects to achieve.]

7. Key Personnel.

[Identify key personnel who will be involved in the Phase I effort including information on directly related education and experience. A concise technical resume of the principal investigator, including a list of relevant publications (if any), must be included (Please do not include Privacy Act Information). All resumes will count toward the page limit for Volume 2, as specified in the Component-specific instructions.]

[Principal Investigator Name]

[School, Degree, Year]

Relevant Experience

[A concise description of the principal investigator's relevant technical experience and its application to this topic.]

Relevant Awards or Patents

[List any awards received or patents granted or applications submitted for work related to this topic.]

Relevant Publications

[List any publications relevant to this topic.]

[Repeat this format as necessary to address the qualifications of all key personnel.]

8. Foreign Citizens.

[Identify any foreign citizens or individuals holding dual citizenship expected to be involved on this project as a direct employee, subcontractor, or consultant. For these individuals, please specify their country of origin, the type of visa or work permit under which they are performing and an explanation of their anticipated level of involvement on this project. The proposal may be deemed nonresponsive if the requested information is not provided. You may be asked to provide additional information during negotiations in order to verify the foreign citizen's eligibility to participate on a SBIR/STTR contract. Supplemental information provided in response to this paragraph will be protected in accordance with the Privacy Act (5 U.S.C. 552a), if applicable, and the Freedom of Information Act (5 U.S.C. 552(b)(6)). Note: If no foreign nationals will be involved in proposed work, the word "None" can be substituted for the table.]

Name [include direct employees, subcontractors, and consultants]	Foreign National (Yes/No)	Country of Origin	Type of Visa or Work Permit	Level of Involvement (Role)

9. Facilities/Equipment.

[Describe available instrumentation and physical facilities necessary to carry out the Phase I effort. Justify equipment purchases in this section and include detailed pricing information in the Cost Volume. State whether or not the facilities where the proposed work will be performed meet environmental laws and regulations of federal, state (name), and local Governments for, but not limited to, the following groupings: airborne emissions, waterborne effluents, external radiation levels, outdoor noise, solid and bulk waste disposal practices, and handling and storage of toxic and hazardous materials.]

10. Subcontractors/Consultants.

[Propose efforts as applicable to either SBIR or STTR as follows:

SBIR. Involvement of a university or other subcontractors or consultants in the project may be appropriate. A minimum of two-thirds of the research and/or analytical work in Phase I, as measured by direct and indirect costs, must be carried out by the proposing small business firm, unless otherwise approved in writing by the Contracting Officer. SBIR efforts may include subcontracts with Federal Laboratories and Federally Funded Research and Development Centers (FFRDCs). A waiver is not required for the use of Federal Laboratories and FFRDCs; however, proposers must certify their use of such facilities on the proposal cover sheet. Subcontracts with other Federal organizations are not permitted. Note that universities cannot publicly release information related to Export Controlled/ITAR restricted topics. (Refer to the DoW SBIR/STTR solicitation for detailed eligibility requirements as it pertains to the use of subcontractors/consultants.)

STTR. Involvement of a Research Institution in the project is required. A minimum of 40 percent of the research and/or analytical work in Phase I, as measured by direct and indirect costs, must be conducted by the proposing small business firm, and a minimum of 30 percent of the research and/or tasks in Phase I, as measured by direct and indirect costs, must be conducted by a single Research Institution. STTR efforts may include subcontracts with Federally Funded Research and Development Centers (FFRDCs). A waiver is not required for the use of Federal Laboratories, but they do not qualify as a Research Partner; proposers may only subcontract to Federal Laboratories within the remaining 30 percent and must certify their use of such facilities on the proposal cover sheet. Subcontracts with other Federal organizations are not permitted. Note that universities cannot publicly release information related to Export Controlled/ITAR restricted topics. (Refer to the DoW SBIR/STTR solicitation for detailed eligibility requirements as it pertains to the use of subcontractors/consultants.)

11. Prior, Current or Pending Support of Similar Proposals or Awards.

[If a proposal submitted in response to this solicitation is substantially the same as another proposal that was funded, is now being funded, or is pending with another Federal Agency, another or the same DoW Service/Component, you must disclose this on the proposal cover sheet and provide the following information:

- a) Name and address of the Federal Agency(s) or DoW Component to which a proposal was submitted, will be submitted, or from which an award is expected or has been received.
- b) Date of proposal submission or date of award.
- c) Title of proposal.
- d) Name and title of principal investigator for each proposal submitted or award received.
- e) Title, number, and date of solicitation(s) under which the proposal was submitted, will be submitted, or under which award is expected or has been received.
- f) If award was received, provide contract number.
- g) Specify the applicable topics for each proposal submitted or award received.

Note: If this does not apply, state in the proposal "No prior, current, or pending support has been provided for proposed work."]

12. Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software.

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical Data or Computer Software to be Furnished with Restrictions	Basis for Assertion	Asserted Rights Category	Name of Person or Organization Asserting Restrictions
[(LIST)]	[(LIST)]	[(LIST)]	[(LIST)]

[Completion of this table and submission of the proposal constitutes signature for the information listed in the table above.]

[ADDITIONAL INFORMATION/INSTRUCTION: Rights in technical data, including software, developed under the terms of any contract resulting from proposals submitted in response to this solicitation generally remain with the contractor, except that the Government obtains a royalty-free license to use such technical data only for Government purposes during the period commencing with contract award and ending twenty years after completion of the project under which the data were generated. This data must be marked with the restrictive legend specified in DFARS 252.227-7018 (JAN 2025). Upon expiration of the twenty-year restrictive license, the Government has unlimited rights in the SBIR data. During the license period, the Government may not release or disclose SBIR data to any person other than its support services contractors except: (1) For evaluation purposes; (2) As expressly permitted by the contractor; or (3) A use, release, or disclosure that is necessary for emergency repair or overhaul of items operated by the Government. See DFARS clause 252.227-7018 (JAN 2025).

If a proposer plans to submit assertions in accordance with DFARS 252.227-7017 (JAN 2025), those assertions must be identified and assertion of use, release, or disclosure restriction **MUST** be included with your proposal submission. The contract cannot be awarded until assertions have been approved. Please note that only the table is included in the page limitation; any supporting data concerning the contract/grant number and awarding agency, as well as planned use or need of the data asserted, can be provided in Volume 5, Supporting Documents.

The following instructions apply to the fields in the table above (Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software).

- 1) For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process. For computer software or computer software documentation identify the software or documentation.
- 2) Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.
- 3) Enter asserted rights category (e.g., Government purpose license rights from a prior contract, rights in SBIR/STTR data generated under another contract, limited, restricted, or government purpose rights under this or a prior contract, or specially negotiated licenses).
- 4) Corporation, individual, or other person, as appropriate.

Enter "none" when all data or software will be submitted without restrictions.]

Appendix B DEFINITIONS

The following definitions from the SBA SBIR/STTR Policy Directive, the Federal Acquisition Regulation (FAR) and other cited regulations apply to this solicitation.

Commercialization

The process of developing products, processes, technologies, or services, and the production and delivery (whether by the originating party or others) of the products, processes, technologies, or services for Federal Government or commercial markets purchase or use.

Cooperative Research and Development

An SBC and a research institution jointly conduct R&D. For purposes of the STTR Program, the SBC performs 40 percent of the work, and the single research institution performs not less than 30 percent of the work. For purposes of the SBIR Program, this refers to work a research institution conducts as the SBC's subcontractor. The proposing SBC must conduct at least two-thirds of the research and/or analytical work in Phase I.

Covered Individual

An individual who contributes in a substantive, meaningful way to the scientific development or execution of a R&D project proposed to be carried out with a DoW-funded award. DoW has further designated covered individuals as including all proposed key personnel.

Essentially Equivalent Work

Work that is substantially the same research, which is proposed for funding in more than one contract proposal or grant application submitted to the same federal agency or submitted to two or more different federal agencies for review and funding consideration; or work where a specific research objective and the research design for accomplishing the objective are the same or closely related to another proposal or award, regardless of the funding source.

Export Control

The International Traffic in Arms Regulations (ITAR), 22 CFR Parts 120 through 130, and the Export Administration Regulations (EAR), 15 CFR Parts 730 through 799, apply to all projects with military or dual-use applications that develop beyond fundamental research, which is basic and applied research ordinarily published and shared broadly within the scientific community. Details are available [here](#).

NOTE: Export control compliance statements found in the individual Service/Component-specific proposal instructions are not meant to be all inclusive. They do not remove any liability from the submitter to comply with applicable ITAR or EAR export control restrictions or from informing the U.S. Government of any potential export restriction as fundamental R&D efforts proceed.

Federal Laboratory

In 15 U.S.C. §3703, it means any laboratory, any federally funded R&D center (FFRDC), or any center established under 15 U.S.C. §§ 3705 & 3707 that a federal agency owns, leases, or otherwise uses and the Federal Government funds, whether the U.S. Government or the contractor operates.

Federally Funded Award

A Phase I, Phase II (including Direct to Phase II, sequential Phase II/subsequent Phase II and cross-agency Phase II), or Phase III SBIR or STTR award made using a funding agreement.

Foreign Affiliation

Under 15 U.S.C. § 638(e)(16), foreign affiliation means a funded or unfunded academic, professional, or institutional appointment or position with a foreign government or government-owned entity, whether full-time, part-time, or voluntary (including adjunct, visiting, or honorary). This includes appointments or positions deemed adjunct, visiting, or honorary with research institutions located in a foreign country of concern.

Foreign Country of Concern

In 15 U.S.C. § 638(e)(17), foreign country of concern means the People's Republic of China, the Democratic People's Republic of Korea, the Russian Federation, the Islamic Republic of Iran, or any other country the Secretary of State determines as a country of concern.

Foreign Entity

Foreign entity means any branch, partnership, group or sub-group, association, estate, trust, corporation or division of a corporation, non-profit, academic institution, research center, or organization that foreign owners, foreign investors, foreign management, or a foreign government establish, direct, or control.

Foreign Government

Foreign government means any government or governmental body, organization, or instrumentality, including government owned-corporations, other than the U.S. Government or U.S. state, territorial, tribal, or jurisdictional governments or governmental bodies. The term includes, but is not limited to, non-U.S. national and subnational governments, including their respective departments, agencies, and instrumentalities.

Foreign National

Foreign National (also known as Foreign Person) under 22 CFR 120.16 mean any natural person who is not a lawful permanent resident as defined by 8 U.S.C. § 1101(a)(20) or who is not a protected individual as defined by 8 U.S.C. § 1324b(a)(3). It also means any foreign corporation, business association, partnership, trust, society, or any other entity or group that is not incorporated or organized to do business in the United States, as well as international organizations, foreign governments and any agency or subdivision of foreign governments (e.g., diplomatic missions).

“Lawfully admitted for permanent residence” means the status of having been lawfully accorded the privilege of residing permanently in the United States as an immigrant in accordance with the immigration laws, such status not having changed.

"Protected individual" means an individual who (A) is a citizen or national of the United States, or (B) is an alien who is lawfully admitted for permanent residence, is granted the status of an alien lawfully admitted for temporary residence under 8 U.S.C. § 1160(a) or 8 U.S.C. § 1255a(a)(1), is admitted as a refugee under 8 U.S.C. § 1157, or is granted asylum under Section 8 U.S.C. § 1158; but does not include

(i) an alien who fails to apply for naturalization within six months of the date the alien first becomes eligible (by virtue of period of lawful permanent residence) to apply for naturalization or, if later, within six months after November 6, 1986, and (ii) an alien who has applied on a timely basis, but has not been naturalized as a citizen within two years after the date of the application, unless the alien can establish that the alien is actively pursuing naturalization, except that time consumed in the Service's processing the application shall not be counted toward the two-year period.

Fraud, Waste and Abuse

- a. Fraud includes any false
- b. about a material fact or any intentional deception designed to deprive the United States unlawfully of something of value or to secure from the United States a benefit, privilege, allowance, or consideration to which an individual or business is not entitled.
- c. Waste includes extravagant, careless or needless expenditure of government funds, or the consumption of government property, that results from deficient practices, systems, controls, or decisions.
- d. Abuse includes any intentional or improper use of government resources, such as misuse of rank, position, or authority or resources.
- e. The SBIR/STTR Program training related to Fraud, Waste and Abuse is available [here](#). See Section 1.13 for reporting fraud, waste, and abuse.

Funding Agreement

Any contract, grant, or cooperative agreement entered between any Federal Agency and any SBC for the performance of experimental, developmental, or research work, including products or services, Federal Government-funded in whole or in part. DoW Services/Components will only use contracts and other transaction authority (OTA) agreements for all SBIR awards.

Historically Black Colleges and Universities, and Minority-Serving Institutions

Department of Education [list](#) for historically Black colleges and universities and minority-serving institutions.

HUBZone Certified Small Business Concern

An SBC with SBA certification under the Historically Underutilized Business Zones (HUBZone) Program (13 C.F.R. § 126) as a HUBZone firm listed in the dynamic small business search (DSBS).

Innovation

As defined and as used in SBA Policy Directive 3(t), the term innovation means- Something new or improved, having marketable potential, that includes the development of new technology, the refinement of existing technology, or the development of new applications for existing technology.

Malign Foreign Talent Recruitment Program

As defined in 42 U.S.C § 19237, the term “malign foreign talent recruitment program” means-
(A) any program, position, or activity that includes compensation in the form of cash, in-kind compensation, including research funding, promised future compensation, complimentary foreign travel, things of non de minimis value, honorific titles, career advancement opportunities, or other

types of remuneration or consideration directly provided by a foreign country at any level (national, provincial, or local) or their designee, or an entity based in, funded by, or affiliated with a foreign country, whether or not directly sponsored by the foreign country, to the targeted individual, whether directly or indirectly stated in the arrangement, contract, or other documentation at issue, in exchange for the individual-

- (i) engaging in the unauthorized transfer of intellectual property, materials, data products, or other nonpublic information owned by a United States entity or developed with a Federal R&D award to the government of a foreign country or an entity based in, funded by, or affiliated with a foreign country regardless of whether that government or entity provided support for the development of the IP, materials, or data products;
- (ii) being required to recruit trainees or researchers to enroll in such program, position, or activity;
- (iii) establishing a laboratory or company, accepting a faculty position, or undertaking any other employment or appointment in a foreign country or with an entity based in, funded by, or affiliated with a foreign country if such activities are in violation of the standard terms and conditions of a Federal R&D award;
- (iv) being unable to terminate the foreign talent recruitment program contract or agreement except in extraordinary circumstances;
- (v) through funding or effort related to the foreign talent recruitment program, being limited in the capacity to carry out a R&D award or required to engage in work that would result in substantial overlap or duplication with a Federal R&D award;
- (vi) being required to apply for and successfully receive funding from the sponsoring foreign government's funding agencies with the sponsoring foreign organization as the recipient;
- (vii) being required to omit acknowledgment of the recipient institution with which the individual is affiliated, or the Federal research agency sponsoring the R&D award, contrary to the institutional policies or standard terms and conditions of the Federal R&D award;
- (viii) being required to not disclose to the Federal research agency or employing institution the participation of such individual in such program, position, or activity; or
- (ix) having a conflict of interest or conflict of commitment contrary to the standard terms and conditions of the Federal R&D award; and

(B) a program that is sponsored by-

- (i) a foreign country of concern or an entity based in a foreign country of concern, whether or not directly sponsored by the foreign country of concern;
- (ii) an academic institution on the list developed under section 1286(c)(8) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (10 U.S.C. 2358 note; 1 Public Law 115–232) ; or
- (iii) a foreign talent recruitment program on the list developed under section 1286(c)(9) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (10 U.S.C. 2358 note; 1 Public Law 115–232).

Performance Benchmark Requirements

SBCs with multiple SBIR/STTR awards must meet minimum performance requirements to be eligible to apply for a new Phase I or Direct-to-Phase II award. The purpose of these requirements is to ensure that Phase I SBCs with multiple prior SBIR/STTR awards are making progress towards commercializing the work done under those awards. The Phase I to Phase II transition rate addresses the extent to which an awardee progresses a project from Phase I to Phase II. The commercialization benchmark addresses the extent to which an awardee has moved past Phase II work towards commercialization.

The SBIR and STTR Extension Act of 2022 (Pub. L. 117-183) amended the benchmarks' applications for more experienced firms. Detailed information on benchmark calculations and increased performance standards for more experienced firms can be found [here](#).

Personal Conflict of Interest

A situation in which an individual has a financial interest, personal activity, or relationship that could impair the employee's ability to act impartially and in the best interest of the government when performing under the contract. (A de minimis interest that would not "impair the employee's ability to act impartially and in the best interest of the government" is not covered under this definition.)

Among the sources of personal conflicts of interest are:

- a. The covered employee's, their close family members' or other members of their household's financial interests;
- b. Other employment or financial relationships (including seeking or negotiating for prospective employment or business); and
- c. Gifts, including travel.

Financial interests referred to in this definition's first paragraph may arise from:

- a. Compensation, including wages, salaries, commissions, professional fees, or fees for business referrals;
- b. Consulting relationships (including commercial and professional consulting and service arrangements, scientific and technical advisory board memberships, or serving as an expert witness in litigation);
- c. Services provided in exchange for honorariums or travel expense reimbursements;
- d. Research funding or other forms of research support;
- e. Investment in the form of stock or bond ownership or partnership interest (excluding diversified mutual fund investments);
- f. Real estate investments;
- g. Patents, copyrights, and other IP interests; or
- h. Business ownership and investment interests.

Principal Investigator/Program Manager

The principal investigator/project manager is the proposing SBC-designated individual who provides the scientific and technical direction to a funding agreement-supported project.

Proprietary Information

Proprietary information is any information that an SBC considers to be non-public information the SBC owns and is marked accordingly.

Research Institution

Any organization located in the United States that is:

- a. A university.
- b. A nonprofit institution as defined in Section 4(5) of the Stevenson-Wydler Technology Innovation Act of 1980.
- c. A contractor-operated federally funded R&D center, as identified by the National Science Foundation in accordance with the government-wide FAR issued in accordance with the Office of Federal Procurement Policy Act Section 35(c)(1). A list of eligible FFRDCs is [here](#).

Research or Research and Development

Any activity that is:

- a. A systematic, intensive study directed toward greater knowledge or understanding of the subject studied.
- b. A systematic study directed specifically toward applying new knowledge to meet a recognized need; or
- c. A systematic knowledge application toward the production of useful materials, devices, systems, or methods, including design, development, and improvement of prototypes and new processes to meet specific requirements.

Research Involving Animal Subjects

All activities involving animal subjects shall be conducted in accordance with DoDI 3216.01 “Use of Animals in DoD Programs,” 9 C.F.R. parts 1-4 “Animal Welfare Regulations,” National Academy of Sciences Publication “Guide for the Care & Use of Laboratory Animals,” as amended, and the Department of Agriculture rules implementing the Animal Welfare Act (7 U.S.C. §§ 2131-2159), as well as other applicable federal and state law and regulation and DoD instructions.

“Animal use” protocols apply to all activities that meet any of the following criteria:

- a. Any research, development, test, evaluation or training, (including experimentation) involving an animal or animals.
- b. An animal is defined as any living or dead, vertebrate organism (non-human) that is being used or is intended for use in research, development, test, evaluation or training.
- c. A vertebrate is a member of the subphylum Vertebrata (within the phylum Chordata), including birds and cold-blooded animals.

See DoDI 3216.01 for definitions of these terms and more information about the applicability of DoDI 3216.01 to work involving animals.

Research Involving Human Subjects

All research involving human subjects shall be conducted in accordance with 32 C.F.R. § 219 “The Common Rule,” 10 U.S.C. § 980 “Limitation on Use of Humans as Experimental Subjects,” and DoDI 3216.02 “Protection of Human Subjects and Adherence to Ethical Standards in DoD-Supported Research,” as well as other applicable federal and state law and regulations, and DoW Services/Component guidance. Proposing SBCs must be cognizant of and abide by the additional restrictions and limitations imposed on the DoW regarding research involving human subjects, specifically as they regard vulnerable populations (DoDI 3216.02), recruitment of military research subjects (DoDI 3216.02), and informed consent and surrogate consent (10 U.S.C. § 980) and chemical and biological agent research (DoDI 3216.02). Food and Drug Administration regulation and policies may also apply.

“Human use” protocols apply to all research that meets any of the following criteria:

- a. Any research involving an intervention or an interaction with a living person that would not be occurring or would be occurring in some other fashion but for this research.
- b. Any research involving identifiable private information. This may include data/information/specimens collected originally from living individuals (broadcast video, web-use logs, tissue, blood, medical or personnel records, health data repositories, etc.) in which the

identity of the subject is known, or the identity may be readily ascertained by the investigator or associated with the data/information/specimens.

See DoDI 3216.02 for definitions of these terms and more information about the applicability of DoDI 3216.02 to research involving human subjects.

Research Involving Recombinant DNA Molecules

Any recipient performing research involving recombinant DNA molecules and/or organisms and viruses containing recombinant DNA molecules shall comply with the National Institutes of Health Guidelines for Research Involving Recombinant DNA Molecules, dated January 2011, as amended. The guidelines can be found at: https://osp.od.nih.gov/wp-content/uploads/2016/05/NIH_Guidelines.pdf. Recombinant DNA is defined as (i) molecules that are constructed outside living cells by joining natural or synthetic DNA segments to DNA molecules that can replicate in living cells or (ii) molecules that result from the replication of those described in (i) above.

Service-Disabled Veteran-Owned Small Business (SDVOSB)

A service-disabled veteran or service-disabled veterans-owned and controlled SBC defined in Small Business Act 15 USC § 632(q)(2) and SBA's implementing SDVOSB regulations (13 CFR 125).

Small Business Concern (SBC)

A concern that meets the requirements set forth in 13 C.F.R. § 121.702 (available [here](#)).

An SBC must satisfy the following conditions on the date of award:

- a. Is organized for profit, with a place of business located in the United States, which operates primarily within the United States, or which makes a significant contribution to the United States economy through payment of taxes or use of American products, materials or labor;
- b. Is in the legal form of an individual proprietorship, partnership, limited liability company, corporation, joint venture, association, trust or cooperative, except that if the concern is a joint venture, each entity to the venture must meet the requirements set forth in paragraph (c) below;
- c. Is more than 50 percent directly owned and controlled by one or more individuals (who are citizens or permanent resident aliens of the United States), other SBCs (each of which is more than 50 percent directly owned and controlled by individuals who are citizens or permanent resident aliens of the United States), or any combination of these; and
- d. Has, including its affiliates, not more than 500 employees. (See [here](#) for definition of an affiliate.)

Subcontract

A subcontract is any agreement, other than one involving an employer-employee relationship, including consultants, the funding agreement awardee enters calling for supplies or services for the performance of the original funding agreement.

Subcontractor

Subcontractor means any supplier, distributor, vendor, firm, academic institution, research center, or other person or entity that furnishes supplies or services pursuant to a subcontract, at any tier.

United States

United States means the fifty states, the territories and possessions of the Federal Government, the Commonwealth of Puerto Rico, the Republic of the Marshall Islands, the Federated States of Micronesia, the Republic of Palau, and the District of Columbia.

Women-Owned Small Business Concern

An SBC where one or more women own at least 51 percent, or in the case of any publicly owned business, women own at least 51 percent of the stock, and women control the management and daily business operations.

Appendix C

POTENTIAL APPLICABLE FEDERAL ACQUISITION REGULATION, DEFENSE FEDERAL ACQUISITION REGULATION SUPPLEMENT CLAUSES

Note: An independent review and determination of required clauses should be complete for each award. Green cells are potential required Federal Acquisition Regulation (FAR) and Defense Federal Acquisition Regulation Supplement (DFARS) clauses. Blue cells are potential required FAR and DFARS clauses, when applicable.

Clause Number	Title	Date	When Applicable
52.203-17	Contractor Employee Whistleblower Rights	Nov-23	
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan-17	
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	Jun-20	
52.204-13	System for Award Management Maintenance	Oct-18	
52.204-18	Commercial and Government Entity Code Maintenance	Aug-20	
52.204-19	Incorporation by Reference of Representations and Certifications	Dec-14	
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	Nov-21	
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities	Dec-23	
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	Nov-21	
52.204-27	Prohibition on a ByteDance Covered Application	Jun-23	
52.204-30	Federal Acquisition Supply Chain Security Act Orders—Prohibition	Dec-23	
52.209-06	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	Jan-25	
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Nov-15	
52.219-06	Notice of Total Small Business Set-Aside	Nov-20	
52.219-08	Utilization of Small Business Concerns	Jan-25	
52.219-28	Post-Award Small Business Program Representation	Jan-25	
52.222-03	Convict Labor	Jun-03	
52.222-19	Child Labor-Cooperation with Authorities and Remedies	Jan-25	
52.222-21	Prohibition of Segregated Facilities	Apr-15	
52.222-25	Affirmative Action Compliance	Apr-84	
52.222-26	Equal Opportunity	Sep-16	
52.222-36	Equal Opportunity for Workers with Disabilities	Jun-20	

Clause Number	Title	Date	When Applicable
52.222-50	Combating Trafficking in Persons	Nov-21	
52.225-01	Buy American-Supplies	Oct-22	
52.225-13	Restrictions on Certain Foreign Purchases	Feb-21	
52.226-07	Drug-Free Workplace	May-24	
52.226-08	Encouraging Contractor Policies to Ban Text Messaging While Driving	May-24	
52.227-01 Alt I	Authorization and Consent - Alternate I (Apr-84)	Jun-20	
52.227-02	Notice and Assistance Regarding Patent and Copyright Infringement	Jun-20	
52.227-11	Patent Rights-Ownership by the Contractor	May-14	
52.227-20	Rights in Data-SBIR Program	May-14	
52.232-01	Payments	Apr-84	
52.232-11	Extras	Apr-84	
52.232-23	Assignment of Claims	May-14	
52.232-25	Prompt Payment	Jan-17	
52.232-33	Payment by Electronic Funds Transfer - System for Award Management	Oct-18	
52.232-39	Unenforceability of Unauthorized Obligations	Jun-13	
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	Mar-23	
52.233-01	Disputes	May-14	
52.233-04	Applicable Law for Breach of Contract Claim	Oct-04	
52.242-15	Stop-Work Order	Aug-89	
52.243-01 Alt V	Changes-Fixed-Price Alternate V (Apr-84)	Aug-87	
52.244-06	Subcontracts for Commercial Products and Commercial Services	Jan-25	
52.246-09	Inspection of Research and Development (Short Form)	Apr-84	
52.252-02	Clauses Incorporated by Reference	Feb-98	
52.252-06	Authorized Deviations in Clauses	Nov-20	
52.253-01	Computer Generated Forms	Jan-91	
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	Sep-11	
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	Dec-22	
252.204-7000	Disclosure of Information	Oct-16	
252.204-7003	Control of Government Personnel Work Product	Apr-92	
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls	Oct-16	
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information	Jan-23	
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting (DEVIATION 2024-O0013)	May-24	

Clause Number	Title	Date	When Applicable
252.204-7016	Covered Defense Telecommunications Equipment or Services—Representation	Dec-19	
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services—Representation	May-21	
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services	Jan-23	
252.204-7019	Notice of NISTSP 800-171 DoD Assessment Requirements	Nov-23	
252.204-7020	NIST SP 800-171 DoD Assessment Requirements	Nov-23	
252.204-7022	Expediting Contract Closeout	May-21	
252.204-7024	Notice on the use of the Supplier Performance Risk System	Mar-23	
252.227-7016	Rights in Bid or Proposal Information	Jan-23	
252.227-7018	Rights in Other Than Commercial Technical Data and Computer Software—Small Business Innovation Research Program and Small Business Technology Transfer Program	Jan-25	
252.227-7019	Validation of Asserted Restrictions--Computer Software	Jan-25	
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends	Jan-25	
252.227-7030	Technical Data--Withholding of Payment	Mar-00	
252.227-7037	Validation of Restrictive Markings on Technical Data	Jan-25	
252.227-7039	Patents--Reporting of Subject Inventions	Apr-90	
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	Dec-18	
252.232-7006	Wide Area WorkFlow Payment Instructions	Jan-23	
252.232-7010	Levies on Contract Payments	Dec-06	
252.235-7010	Acknowledgment of Support and Disclaimer	May-95	
252.235-7011	Final Scientific or Technical Report	Dec-19	
252.243-7001	Pricing of Contract Modifications	Dec-91	
252.244-7000	Subcontracts for Commercial Items	Nov-23	
52.203-03	Gratuities	Apr-84	Exceeding the simplified acquisition threshold.
52.203-05	Covenant Against Contingent Fees	May-14	Exceeding the simplified acquisition threshold.
52.203-06 or Alt I	Restrictions on Subcontractor Sales to the Government or ALT I	Nov-21	Exceeding the simplified acquisition threshold, Alt I commercial products or commercial services.
52.203-07	Anti-Kickback Procedures	Jun-20	Contracts exceeding \$150,000.
52.203-08	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	May-14	Exceeding the simplified acquisition threshold.
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity	May-14	Exceeding the simplified acquisition threshold.
52.203-12	Limitation on Payments to Influence Certain Federal Transactions	Jun-20	Contracts exceeding \$150,000.

Clause Number	Title	Date	When Applicable
52.204-02	Security Requirements	Mar-21	May require access to classified information; cost contract (see 16.302) for research and development with an educational institution is contemplated.
52.212-04	Contract Terms and Conditions— Commercial Products and Commercial Services	Nov-23	Commercial products or commercial services.
52.212-05	Contract Terms and Conditions Required to Implement Statutes or Executive Orders- Commercial Items	May-24	Commercial products or commercial services.
52.219-14	Limitations on Subcontracting	Oct-22	Set aside for small business and the contract amount is expected to exceed the simplified acquisition threshold.
52.222-35	Equal Opportunity for Veterans	Jun-20	Contracts exceed \$150,000.
52.222-37	Employment Reports on Veterans	Jun-20	If contract contains 52.222-35.
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	Dec-10	Exceeding the simplified acquisition threshold.
52.222-54	Employment Eligibility Verification	Jan-25	Contracts exceed \$150,000.
52.223-03	Hazardous Material Identification and Material Safety Data	Feb-21	Requires the delivery of hazardous materials.
52.229-03	Federal, State, and Local Taxes	Feb-13	A fixed-price contract is contemplated; and the contract is expected to exceed the simplified acquisition threshold.
52.232-02	Payment under Fixed-Price Research and Development Contracts	Apr-84	Fixed Price R&D.
52.233-03	Protest After Award	Aug-96	Exceed the simplified acquisition threshold.
52.242-13	Bankruptcy	Jul-95	Exceed the simplified acquisition threshold.
52.242-17	Government Delay of Work	Apr-84	Supplies other than commercial or modified-commercial products.
52.245-01	Government Property	Sep-21	When property is expected to be furnished.
52.245-09	Use and Charges	Apr-12	When the clause at 52.245-1 is included.
52.246-04	Inspection of Services-Fixed Price	Aug-96	Services, or supplies that involve the furnishing of services, when a fixed-price contract is contemplated, and the contract amount is expected to exceed the simplified acquisition threshold.
52.246-16	Responsibility for Supplies	Apr-84	Supplies, services involving the furnishing of supplies, or research and development, when a fixed-price contract is contemplated, and the contract amount is expected to exceed the simplified acquisition threshold.
52.246-23	Limitation of Liability	Feb-97	Exceed the simplified acquisition threshold.
52.247-34	F.o.b. Destination	Nov-91	When the delivery term is f.o.b. destination.
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support	Jan-23	Commercial products and commercial services.
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism	May-19	Contracts value of \$150,000 or more.
252.211-7003	Item Identification and Valuation	Jan-23	For supplies, and for services involving the furnishing of supplies.
252.223-7001	Hazard Warning Labels	Dec-91	Requires submission of hazardous material data sheets.
252.223-7008	Prohibition of Hexavalent Chromium	Jan-23	For supplies, maintenance and repair services, or construction.

Clause Number	Title	Date	When Applicable
252.225-7001	Buy American and Balance of Payments Program	Feb-24	Acquisition of commercial products and commercial services.
252.225-7002	Qualifying Country Sources as Subcontractors	Mar-22	(i) 252.225-7001, Buy American and Balance of Payments Program. Use if one or more is included: (ii) 252.225-7021, Trade Agreements. (iii) 252.225-7036, Buy American - Free Trade Agreements - Balance of Payments Program.
252.225-7012	Preference for Certain Domestic Commodities	Apr-22	Commercial products and commercial services.
252.225-7052	Restriction on Acquisition of Certain Magnets, Tantalum, and Tungsten	May-24	Products and commercial services, that exceed the simplified acquisition threshold.
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime	Jan-23	Commercial products and commercial services.
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region	Jun-23	Products utilizing funds appropriated or otherwise made available for any fiscal year.
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems (DEVIATION 2024-O0014)	Aug-24	Commercial products and commercial services.
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (DEVIATION 2024-O0006, Revision 1)	Feb-24	Exceeding the simplified acquisition threshold and for commercial products and commercial services.
252.228-7001	Ground and Flight Risk	Mar-23	Acquisition, development, production, modification, maintenance, repair, flight, or overhaul of aircraft owned by or to be delivered to the Government.
252.228-7005	Mishap Reporting and Investigation Involving Aircraft, Missiles, and Space Launch Vehicles	Nov-19	Acquisition, development, production, modification, maintenance, repair, flight, or overhaul of aircraft owned by or to be delivered to the Government.
252.235-7002	Animal Welfare	Dec-14	Uses live vertebrate animals.
252.235-7004	Protection of Human Subjects	Jul-09	Involving human subjects.
252.243-7002	Requests for Equitable Adjustment	Dec-22	Exceeding the simplified acquisition threshold.
252.245-7003	Contractor Property Management System Administration	Jan-25	Containing the clause at FAR 52.245-1, Government Property.
252.245-7005	Management and Reporting of Government Property	Jan-24	Containing the clause at FAR 52.245-1, Government Property.
252.247-7023	Transportation of Supplies by Sea	Oct-24	Except - those with an anticipated value at or below the simplified acquisition threshold.